

INTRODUCTION TO LEGAL METHODS COURSE

LLB ONE

- **S** = Specific
 - **M** = Measurable
 - **A** = Attainable/Achievable
 - **R** = Realistic
 - **T** = Time Bound
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- **Objectives should be based on the above**
 - **Objectives of the course**
 - This course seeks to enable first year students to identify, analyze and research issues in any area of law.
 - It is a bridge course designed to equip students with the basic skills and information necessary to navigate the law-related courses and activities during their law school.
 - Students will be introduced to legal citations, legal analysis, statutory interpretation, legal research resources, and legal writing. This provides the academic foundation for the clinical component of the course, which will take place in the winter term.
 - This provides the academic foundation for the clinical component of the course
 - It is a bridge course designed to equip students with the basic skills and information necessary to navigate the law-related courses and activities during their law school.
 - It helps students to develop skills in oral advocacy, legal drafting, teamwork, professional ethics, and developing a professional identity in the context of practicing law.
 - The methods of learning may include all or any of the following singularly or in combination:
 - Case studies;
 - Lecture methods
 - Tutorials;
 - Discussions and presentations,; and,

- Debates
- Specific
 - A specific goal has a much greater chance of being accomplished than a general goal. Provide enough detail so that there is no indecision as to what exactly the participant should be doing. An example of a general goal would be, "*Increase consumption of fruits and vegetables.*" But a specific goal would say, "*Increase fruits and vegetables consumption by including a serving at one meal per day.*"
- Measurable
 - Choose a goal with measurable progress, so the participant can see the change as it occurs. A measurable goal has an outcome that can be assessed either on a sliding scale (1-10), or as a hit or miss, success or failure. Based on our example, "*Increase fruits and vegetables consumption by including a serving at one meal per day*" would be a measurable goal because we are measuring if the participant consumed fruits and vegetables one meal per day.
- Attainable/Achievable
 - An achievable goal has an outcome that is realistic given the participant's current social, economic, or cultural resources and time available. Goal achievement may be more of a "stretch" if the outcome is difficult to begin with. Our example of a goal was to "*Increase fruits and vegetables consumption by including a serving at one meal per day.*" Is consuming a serving of fruits and vegetables one meal a day possible for the participant? If not, then this would not be an attainable goal.
- Realistic
 - Start small; with what the participant can and will do and let the participant experience the joys of meeting their goal. Gradually increase the intensity of the goal after having a discussion with the participant, parent or caretaker to redefine the goal. Is our example goal "*Increase fruits and vegetables consumption by including a serving at one meal per day*" realistic for a WIC participant's food budget? If not, then we might want to redefine the goal.
- Time Bound
 - Set a timeframe for the goal: for next week, in three months, by six months. Setting an end point for the goal gives the participant a clear target to achieve. Nutrition follow-up ideally should occur within the 6-month certification period (best practice) but shall occur within one year or two certification periods or prior to the participant's change in categorical status.

Remember that follow-up is an essential component of WIC value enhanced nutrition services provided for the benefit of program participants. Follow Up should be provided to find out how the participant has addressed a nutrition issue, but should not replace a nutrition education contact/intervention.

- By the end of the course, students are expected to have acquired ability to apply the basic skills of legal research and writing, appreciate their over-arching character in relation to the legal profession; fully comprehend the main principles of statutory interpretation and its relationship with legal practice and the administration of justice and to be able to apply the key principles and skills of legal research and writing in their legal education.

Topic 1: Rules of case citation

Citation is a reference to a specific legal source, such as the Constitution, Statutes. The official report for a particular Court is called official citation. The official reports are published by the publisher with whom that Court has contracted to publish cases and the citations given after the official cite are known as unofficial or parallel citations.

- **Case Method**

A case citation will usually have the following features;

- a) Case Name, where one cites the names of the parties on either side
- b) The year in which the case was reported
- c) The reporter volume number
- d) The reporter abbreviation e.g. K.B, ULR
- e) The page number

One can cite a case like; **Daver Vs Scorpion (2007) 1 ALLER 56**. In this case, Daver and Scorpion will stand for parties, (2007) stands for the year the case was decided, 1 stands for the volume number, **ALLER** is the volume of the reporter, **56** stands for the page number

- A system of instruction or study of law focused upon the analysis of court opinions rather than lectures and textbooks.
- Though the commonest method of teaching in many universities across, it is not fully used in teaching law at IUIU and other universities in Uganda.

- Students do not know how to use authorities appropriately and their reading culture needs to be boosted. This is basic for any trained lawyer.
- It trains you in conducting research independently, which should be emphasized in legal research methodology course.
- This is the purpose of the case method; to strengthen how you discover the law.
- Students must be assigned cases and statutes to read and make presentation in class.
- This however depends on availability of reading lists, which should be provided by staff to Mr. Kalaja for filing and distribution to students.
- We can make use of reading lists from other universities if unavailable at UIIU.
- These reading lists must be updated every semester to capture new developments.

Rationale

- The case method enables a student to master the use and application of the law.
- Offers students opportunity to read, analyze and interpret cases by themselves.
- Students are better educated about interpreting case decisions.
- The principle underlying learning the law is:

- To read the actual judicial decisions which become the law under the rule of stare decisis.
- The case study method therefore, requires students to work almost exclusively with primary source material. Namaja Rachel to make presentation on primary and secondary sources
- It is the primary method of legal instruction throughout American universities and other common law countries like Canada, Australia or New Zealand.
- The case method is usually coupled with the Socratic method, though there may be differences.
- The Socratic method has the following tenets:
 - Enabling students to orally respond to questions designed to help them gain further insight into the meaning of the law;
 - Students learn the skill of critical analysis;
 - Students can separate relevant and irrelevant facts;
 - Students are able to distinguish between seemingly similar facts and issues; and,
 - They can analogize between dissimilar facts and issues.
- On the other hand the case method involves real parties with real problems and therefore,

- It stimulates students more than do textbooks.
- Helps students develop the ability to read and analyze cases, which is a crucial skill for lawyers.
- Offers instruction in basic lawyering skills.
- Reading cases enables students learn how and why judges adhere, or do not adhere to law developed in previous cases.
- Students also learn how judges have the discretion to create law by construing statutes or constitutions.
- It teaches, by example, the system of legal precedence.
- Landmark cases are highlighted and can be summarized together with holdings in other cases which further refine the rule.
- Students are expected to write case briefs. Students should write case briefs.
- **What is a case brief?**
- The case brief represents a final product after reading a case, rereading it, tearing it apart, and putting it back together again.
- It functions as a tool for self-instruction and referencing and also provides a valuable “cheat sheet” for class participation.
- It is about the basics of reading, annotating, highlighting, and briefing a case

- The purpose of a brief is a reminder of the important details that make the case significant in terms of the law.
- Making a brief is not to persuade the world that the ultimate decision in the case is a sound one, but rather to aid in refreshing your memory concerning the most important parts of the case.
- A brief should be brief!
- Avoid overly long or cumbersome briefs as they are not very helpful as you will be unable to skim them easily when you review your notes
- On the other hand, a brief that is too short will be equally unhelpful because it lacks sufficient information to refresh your memory. Try to keep your briefs to one page in length. This will make it easy for you to organize and reference them.
- While opinions may vary, four elements that are essential to any useful brief are the following:
 - Facts (name of the case and its parties, what happened factually and procedurally, and the judgment)
 - Procedural history
 - Issues (what is in dispute)
 - Holding (conclusion on the applied rule of law)
 - Rationale (analysis and reasons for the holding)
 - Other considerations (such as dicta)
- These are everything you need in order to recall effectively the information from the case during class or several months later when studying for exams.
- There may be other elements one may include to expand on the four elements which may be useful.
- To the extent that more elements will help with organization and use of the brief, include them.
- For example, a case that has a long and important section expounding dicta might call for a separate section in your brief labeled: Dicta.
- However, if you find that having more elements makes your brief cumbersome and hard to use, cut back on the number of elements.
- At a minimum, however, make sure you include the four elements listed above.

- Elements that you may also want to consider including in addition to the four basic elements are:
 - Dicta (commentary about the decision that was not the basis for the decision)
 - Dissent (if a valuable dissenting opinion exists, the dissent's opinion)
 - Party's Arguments (each party's opposing argument concerning the ultimate issue)
 - Comments (personal commentary)
- In addition to these elements, it may help you to organize your thoughts, as some people do, by dividing Facts into separate elements:
- Facts of the case (what actually happened, the controversy)
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- Procedural History (what events within the court system led to the present case)
 - Procedural History is usually minimal and most of the time irrelevant to the ultimate importance of a case; however, this is not always true. One subject in which Procedure History is virtually always relevant is Civil Procedure.
 - Examples of procedural history:
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 - [Benn v. Thomas \(Iowa 1994\)](#)

Posted on [November 18, 2016](#) | [Uncategorized](#) | Tags: [Torts](#), [Torts Case Briefs](#), [Torts Law](#)

Procedural History: Benn's executor sued defendant for Lora Benn's injuries and his death in 1989 after defendant's vehicle rear-ended the van in which decedent was a passenger. The estate requested a jury instruction based on the "eggshell plaintiff..

- [Hymowitz v. Eli Lilly & Co.](#)

Posted on [November 18, 2016](#) | [Torts](#) | Tags: [Torts](#), [Torts Case Briefs](#), [Torts Law](#)

Procedural History: Plaintiffs appeal in the context of summary judgment motions dismissed because the plaintiffs could not identify

the manufacturer of the drug that allegedly injured them. The trial court denied all motions and allowed cross motions dismissing defenses that act...

- [Matsuyama v. Birnbaum \(Mass. 2008\)](#)

Posted on [November 3, 2016](#) | [Torts](#) | Tags: [Torts](#), [Torts Case Briefs](#)

Procedural History: A jury found that the defendant physician's negligence deprived the plaintiff's decedent of a less than even chance of surviving cancer. The jury found for plaintiff after hearing expert testimony estimating the lost chance that Matsuyama had due t.

- Judgment (what the court actually decided)
- When describing the Judgment of the case, distinguish it from the Holding.
- The Judgment is the factual determination by the court, in favor of one party, such as "affirmed," "reversed," or "remanded."
- In contrast, the Holding is the applied rule of law that serves as the basis for the ultimate judgment.

EXTRACTING THE RELEVANT INFORMATION: ANNOTATING AND HIGHLIGHTING

- You should extract facts whichever are important and relevant
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- When you read your first few cases, you may think that everything that the judge said was relevant to his ultimate conclusion.
- Even if this were true, what is relevant for the judge to make his decision is not always relevant for you to include in your brief..
- You should include the facts that are necessary to remind you of the story. If you forget the story, you will not remember how the law in the case was applied.

- You should also include the facts that are dispositive to the decision in the case.
- For instance, if the fact that a car is white is a determining factor in the case, the brief should note that the case involves a white car and not simply a car.
- To the extent that the procedural history either helps you to remember the case or plays an important role in the ultimate outcome, you should include these facts as well.
- What issues and conclusions are relevant to include in a brief?
- There is usually one main issue on which the court rests its decision.
- This may seem simple, but the court may talk about multiple issues, and may discuss multiple arguments from both sides of the case.
- Be sure to distinguish the issues from the arguments made by the parties.
- The relevant issue or issues, and corresponding conclusions, are the ones for which the court made a final decision and which are binding.
- The court may discuss intermediate conclusions or issues, but stay focused on the main issue and conclusion which binds future courts.
- What rationale is important to include in a brief?
- The rationale is the basic reasoning that the court used to come to its decision and the key factors that made the decision favor one side or the other.

- While a brief is an extremely helpful and important study aid, annotating and highlighting are other tools for breaking down the mass of material in your casebook.



- **Annotating Cases**

Many of you probably already read with a pencil or pen, but if you do not, now is the time to get in the habit. Cases are so dense and full of information that you will find yourself spending considerable amounts of time rereading cases to find what you need. An effective way to reduce this time is to annotate the margins of the casebook. Your pencil (or pen) will be one of your best friends while reading a case. It will allow you to mark off the different sections (such as facts, procedural history, or conclusions), thus allowing you to clear your mind of thoughts and providing an invaluable resource when briefing and reviewing.

You might be wondering why annotating is important if you make an adequate, well-constructed brief. By their very nature briefs cannot cover everything in a case. Even with a thorough, well-constructed brief you may want to reference the original case in order to reread dicta that might not have seemed important at the time, to review the complete procedural history or set of facts, or to scour the rationale for a better understanding of the case; annotating makes these tasks easier. Whether you return to a case after a few hours or a few months, annotations will swiftly guide you to the pertinent parts of the case by providing a roadmap of the important sections. Your textual markings and margin notes will refresh your memory and restore specific thoughts you might have had about either the case in general or an individual passage.

Annotations will also remind you of forgotten thoughts and random ideas by providing a medium for personal comments.

In addition to making it easier to review an original case, annotating cases during the first review of a case makes the briefing process easier. With adequate annotations, the important details needed for your brief will be much easier to retrieve. Without annotations, you will likely have difficulty locating the information you seek even in the short cases. It might seem strange that it would be hard to reference a short case, but even a short case will likely take you at least fifteen to twenty-five minutes to read, while longer cases may take as much as thirty minutes to an hour to complete. No matter how long it takes, the dense material of all cases makes it difficult to remember all your thoughts, and trying to locate specific sections of the analysis may feel like you are trying to locate a needle in a haystack. An annotation in the margin, however, will not only swiftly

guide you to a pertinent section, but will also refresh the thoughts that you had while reading that section.

When you read a case for the first time, read for the story and for a basic understanding of the dispute, the issues, the rationale, and the decision. As you hit these elements (or what you think are these elements) make a mark in the margins. Your markings can be as simple as “facts” (with a bracket that indicates the relevant part of the paragraph). When you spot an issue, you may simply mark “issue” or instead provide a synopsis in your own words. When a case sparks an idea — write that idea in the margin as well — you never know when a seemingly irrelevant idea might turn into something more.

Finally, when you spot a particularly important part of the text, underline it (or highlight it as described below).

With a basic understanding of the case, and with annotations in the margin, the second read-through of the case should be much easier. You can direct your reading to the most important sections and will have an easier time identifying what is and is not important. Continue rereading the case until you have identified all the relevant information that you need to make your brief, including the issue(s), the facts, the holding, and the relevant parts of the analysis.

Pencil or pen — which is better to use when annotating? Our recommendation is a mechanical pencil. Mechanical pencils make finer markings than regular pencils, and also than ballpoint pens. Although you might think a pencil might smear more than a pen, with its sharp point a mechanical pencil uses very little excess lead and will not smear as much as you might imagine. A mechanical pencil will also give you the freedom to make mistakes without consequences. When you first start annotating, you may think that some passages are more important than they really are, and therefore you may resist the urge to make a mark in order to preserve your book and prevent false guideposts. With a pencil, however, the ability to erase and rewrite removes this problem.

Highlighting

Why highlight? Like annotating, highlighting may seem unimportant if you create thorough, well-constructed briefs, but highlighting directly helps you to brief. It makes cases, especially the more complicated ones, easy to digest, review and use to extract information.

Highlighting takes advantage of colors to provide a uniquely effective method for reviewing and referencing a case. If you prefer a visual approach to learning, you may find highlighting to be a very effective tool.

If annotating and highlighting are so effective, why brief? Because the process of summarizing a case and putting it into your own words within a brief provides an understanding of the law and of the case that you cannot gain through the process of highlighting or annotating.

The process of putting the case into your own words forces you to digest the material, while annotating and highlighting can be accomplished in a much more passive manner.

What should you highlight? Similar to annotating, the best parts of the case to highlight are those that represent the needed information for your brief such as the facts, the issue, the holding and the rationale.

Unlike annotating, highlighting provides an effective way to color code, which makes referring to the case even easier. In addition, Highlighters are particularly useful in marking off entire sections by using brackets. These brackets will allow you to color-code the case without highlighting all the text, leaving the most important phrases untouched for a more detailed highlight marking or underlining.

Highlighting is a personal tool, and therefore should be used to the extent that highlighting helps, but should be modified in a way that makes it personally time efficient and beneficial. For instance, you might combine the use of annotations in the margins with the visual benefit of highlighting the relevant text. You may prefer to underline the relevant text with a pencil, but to use a highlighter to bracket off the different sections of a case. Whatever you choose to do, make sure that it works for you, regardless of what others recommend. The techniques in the remainder of this section will describe ways to make full use of your highlighters.

First, buy yourself a set of multi-colored highlighters, with at least four, or perhaps five or six different colors. Yellow, pink, and orange are usually the brightest. Depending on the brand, purple and green can be dark, but still work well. Although blue is a beautiful color, it tends to darken and hide the text.

Therefore we recommend that you save blue for the elements that you rarely highlight.

For each different section of the case, choose a color, and use that color only when highlighting the section of the case designated for that color. Consider using yellow for the text that you tend to highlight most frequently. Because yellow is the brightest, you may be inclined to use yellow for the Conclusions in order to make them stand out the most. If you do this, however, you will exhaust your other colors much faster than yellow and this will require that you purchase an entire set of new highlighters when a single color runs out because colors such as green are not sold separately. If instead you choose to use yellow on a more frequently highlighted section such as the Analysis, when it comes time to replace your yellow marker, you will need only to replace your yellow highlighter individually. In the personal experience on one of the authors, the sections of cases that seemed to demand the most highlighter attention were the

Facts and the Analysis, while the Issues and Holdings demanded the least. Other Considerations and

Procedural History required lots of highlighting in particular cases although not in every case.

Experiment if you must, but try to choose a color scheme early on in the semester and stick with it. That way, when you come back to the first cases of the semester, you will not be confused with multiple color schemes. The basic sections of a case for which you should consider giving a different color are:

Now that we have covered, you are ready to start practicing. Keep the tips and techniques mentioned in this chapter in mind when you tackle the four topics in the remainder of this book. If you have difficulty, refer back to this chapter to help guide you as you master the case method of study and the art of using the common law.

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- Therefore, under the case method, students learn to reduce cases to four basic components:
 - The facts of the controversy;
 - The legal issue that the court decides;
 - The holding or legal resolution; and,

- The reasoning that the court uses to explain its decision.
- To facilitate the case method of study, course outlines play an important role as study aids.
- Principally, a course outline should provide a concise and direct statement of legal issues in a particular area of law.
- Outlines help students to focus on the most important material they have learned in the course of training and they are not only helpful in the examinations, but help them acquire legal skills.

CITATION

Citation is one of the most important parts of a legal research paper. It refers to refers to sources used as authority for the conclusion of law cited in the text.

2. What is “legal citation”?

- **What are the rules of citation?**
 - It is a standard language that allows one writer to refer to legal authorities with sufficient precision and generality that others can follow the references.
- **Legal citation** is the practice of acknowledging and referring to authoritative documents and sources. The most common sources of authority cited are court decisions (cases), statutes, regulations, government documents, treaties, and scholarly writing.
- **Case citation** is a system used by legal professionals to identify past court decisions, either from law reports or in a neutral style that identifies a decision regardless of where it is reported. Case citations are formatted differently in different jurisdictions, but generally contain the same key information.

- It is a language of abbreviations and special terms.
- While this encoding creates difficulty for lay readers, it achieves a dramatic reduction in the space consumed by the, often numerous, references.
- As you become an experienced reader of law writing, you will learn to follow a line of argument straight through the many citations embedded in it. Even so, citations are a bother until the reader wishes to follow one.
- The fundamental tradeoff that underlies any citation scheme is one between providing full information about the referenced work and keeping the text as clean and clear (uncluttered) as possible.
- Standard abbreviations and codes help achieve a reasonable compromise of these competing interests.
- A reference properly written in "legal citation" strives to do at least three things, within limited space:
 - Identify the document and document part to which the writer is referring;
 - Provide the reader with sufficient information to find the document or document part in the sources the *reader* has available (which may or may not be the same sources as those used by the writer), and;
 - Furnish important additional information about the referenced material and its connection to the writer's argument to assist readers in deciding whether or not to pursue the reference.
- Cases are important sources of law and either they may be sourced from law reports, casebooks or periodicals or text books.
- The importance of dates in case citation:
 - As a reference point, dates are important whether in law, social or natural sciences.

- They enable a researcher and reader to find or know the source of information.
- There are different methods of citation in law.
 - The square bracket
 - Round bracket
- The rationale in the use of these methods
 - A date in a square bracket constitutes an essential part of the reference because of the reports being published may be in more than one volume. (1 EALR, 2 EALR etc)
 - Whereas in a round bracket, dates may not be essential. This is common in the use of journals as sources of references.
 - The square bracket is the most used today, though recent development also used serialization citations.
 - LDC law reports are serialized like (1999-2000)
 - Serialized citations are commonly used when referring to periodicals.

Parties

- Law reports as a rule always start with the name of the accuser. For instance in criminal law, **Uganda v Kanyama** is how a criminal case citation is made.
- In civil litigation, it is usually the plaintiff or the petitioner who appears first: **Kifalu v Musege**.
- This however changes in appeals: the appellant appears first and then respondent regardless of who was the petitioner.

- However, in England, the modern view is to leave the appellants appear in the format as in court of first instance.
- This is not the case in East Africa.
- There are special cases which have a different citation not necessarily starting with the name of the petitioner.
 - This applies in cases of administration of deceased's estates in England and judicial review, which is different in Uganda.
 - In England petitions for administration of estates begin with Re, which refers to the matter of the deceased person or cases involving minors. (Re H and others (minors) [1996] 1 All ER 1.
 - In Uganda are cited as any other civil suit with the names of the parties petitioning and children are cited as follows:
[In the Matter of Joseph Benjamin Baugh \(an infant\) and In the Matter of an Application for legal guardianship by Marcia and Russel Baugh.](#) High Court CV-F(family)C(court)-4 of 2003
 - This was an application for guardianship.
 - Adoption cases are cited as High Court Misc.Appl. No. 20 of 2003
 - Petitions for judicial review in Uganda are cited as miscellaneous causes. For example **Kabenge v Uganda Law Society & Anor (MISC. CAUSE NO. 254 OF 2013) [2014] UGHCCD 9 (23 January 2014)**

THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA AT KAMPALA
CIVIL DIVISION
MISC. CAUSE NO. 254 OF 2013
IN THE MATTER OF APPLICATION FOR PREROGATIVE
ORDERS BY WAY OF JUDICIAL REVIEW
BETWEEN
SIMON TENDO KABENGE ::::::::::::::::::::::::::: APPLICANT
VERSUS
1. UGANDA LAW SOCIETY
2. RUTH SEBATINDIRA ::::::::::::::::::::::::::: RESPONDENT

2 Use of authorities

- Primary sources are the principle sources of authorities though secondary sources as text books, periodicals and reports with important legal principles may be used.
- Reading lists do not have only cases and statutes, but have text books, journals and reports which can sources of authority.
- Under the doctrine of precedent, text books and periodicals cannot be used as sources of authority.
- The doctrine of precedent recognizes law reports and legislation as the principles sources of legal authority

- Each country has its own law reports, but since we are bound by common law principles, English precedents may also be sources of authority.
- English and other commonwealth sources of judicial precedents are important sources of legal authority and have played a significant part in the development of law in EA.
- However, except for cases decided in England before the 1902 Order In Council are binding and those after are merely of persuasion.

Importance of local judicial precedents

- Ian R. MacNail in an old article on Research in EA Vol 3 EALaw Journal, urges lawyers to make use of authorities from EA.
- This may explain why we have the East African Law Reports, EACA, local reports like KALR or KLR
- Therefore it is recommended that students should endeavour reading local judicial decisions before going into foreign ones.
- English statutory law is not applicable in EA except under statutes of general application, which apply to common law countries but are no longer applicable in Uganda. **(What are statutes of general application?)**
- However, they are no longer applicable in Uganda.
- The following law reports are common in law practice and may be available in high court and university libraries.
- In England there are official and non official law reports. Official ones include: Appeal Cases (AC), Chancery Division, (Ch) Family Division, (Fam) Queen's and King's Bench (QB/KB), Business Law Reports (Bus LR), Industrial Cases Reports (ICR), Public & Third Sector Law Reports (PTSR), Weekly Law Reports (WLR).

- These are reports sanctioned by the Incorporation Council and referred to as official law reports.
- There are however commercial law reports such as All England Reports (All ER), and in addition are All England Law Reports Reprints (ALL ER Rep) and All ER on EU decisions cited as All ER (EC).
- There are also reports under the neutral system, (**What is neutral system?**) which are official and are cited differently:
 - The Administrative Courts [2000] EWHC Admin 1,2,3...
 - Court of Appeal (Civ Div [2000] EWCR (Civ 1,2,3...
 - High Court (Queens Bench) [2002] EWHCQB, 1,2,3...
 - High Court (Chancery Division [2002] EWHC Ch 1....
 - House of Lords [2002] UKHL
- In East Africa most law reports are commercial either published by law firms like the Kampala Law Report (KALR) or by public institutions like the High Court Bulletin of LDC.
 - The EA Law reports cited as EA
 - East African Court of Appeal EACA
 - Uganda Law Reports (ULR)
 - Kenya Law Reports (KLR)
 - Tanzania Law Reports, (TLR) High Court Digests of Tanzania(HD) (may be they are no longer in publication)
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- Characteristics of law reports
 - A full transcript report with head notes and cross references.
 - What is a head note?
 - Summary of facts
 - Holding
 - They cannot be cited as authorities
 - Judgments handed down by the court
- Accuracy in publishing cases: There are principles followed in deciding which authority should be published.
 - If the case has a new or contain modern reinstatement of an existing principle. See case of *Hunter v Canary Warf* and *Khorosondian v Bush*
 - If it clarifies conflicting decisions of lower courts or interpretation of legislation;
 - If it interprets a common clause in documents commonly used such as wills, contracts.
 - If it clarifies an important point of practice or procedure.

Text Books and periodicals as sources of authority

Read the following cases and sources:

- **Reid v Commissioner of Police Metropolis and Another [1973] 2 All ER 97:** Sources of authorities on ownership of stolen goods: the use of none case law authorities or statutes
- This was a case of purchase of goods which had been stolen and sold to a vendor who put them in a market for sale. The claimant while in the market before sunrise spotted the goods and paid for them. He showed them to

another person who wanted to buy them for a price the claimant did not accept. This person gave them to another dealer who put them on sale. The claimant Reid was alerted about the sale of these artefacts which he identified as his and reported to the police. They were confiscated by the police but the buyer explained how he had bought them for 200 pounds claiming he had a good title as he had bought them in an open market. It was held in the trial court that the buyer had a good title as he had bought the goods in a market overt during the permitted time. Reid appealed.

- **Lord Denning held that;**

The goods should openly be on sale at a time when those who stand or pass by can see them...it must be in day time when all can see what is for sale:and not in the night time; when no one can be sure what is going on. And if n day time what better test can you have than between sunrise and sunset. No half- light then, but full daylight. Just as a distress, to be valid, must made between sunrise and sunset...so a sale in a market overt are to be valid, must be between sunrise and sunset. This sale was made before sunrise, Mr Coke did not get a good title to have the pair of Adam candelabra to him. The appeal was allowed.

The source of authority for this decision was based on case law which was based on Coke's Institute (1642) vol. 2 pp713-714.

One judge Phillimore referred to Coke as a source of authority. Another judge Scarman LJ justified the law on market overt. "...a sale in market overt to confer good title on the bona fide purchaser for value was the openness of the transaction...when shops were scarce, the market was the place and market day the occasion the public to buy and sell. The market was regulated by the franchise holder; the day, and the hours of business were established under the authority of the franchise and were well known. He referred to Blackstone's description of ancient safeguards fro the true owner.

- **Greenland (Ltd) v Wilmshurst and Ors (1913) 29 TLR 685:** Authors who are still alive should not be used as sources of authority.

- **R v Shivpuri [1986] 2 All ER 334:** Why judges may be skeptical of some authors.

The accused/appellant was convicted of attempting to commit an offence of being knowingly concerned in dealing with and harbouring prohibited drugs contrary to s1 of the Criminal attempt Act of the Customs and Excise Management Act. On checking the drugs, they were found not belonging to the prohibited drugs. In directing the jury, the judge directed the jury on “the appellant acting knowingly did not require the prosecution to prove that the appellant knew precisely what the prohibited goods as long as he knew they were prohibited. He was convicted hence this appeal, on grounds that he should not have been convicted over a drug which was not prohibited, could not render him guilty of attempting to deal or harbor a prohibited drug.

The appeal was dismissed.

However what is important with this case is was reference to the **Practice Statement Note of [1966] 3 ALL ER 77** which was applied for the first time applied in a court decision of **Anderton v Ryan [191985] 2 All ER 355** which according to the trial judge was open to questions.

The judge in his opinion expressed reservations by noting that “quite clearly a departure from recent decisions by means of the 1966 Practice Statement has dangers of its own.... If a serious error embodied in a decision in a decision of this house has distorted the law, the sooner it is corrected the better.

Bastin v Davies [1950] 1 All ER 1095: text books as sources should be sparing used unless they have often been referred to by courts as sources of authority. The judge had this to say:

This court would never hesitate to disagree with a statement in a text book, however authoritative or however long it had existed, if it thought fit (Communis error facit jus....If a statement has appeared in well-known textbook for a great number

of years and has never been dissented from a judicial decision, it would be most unfortunate to throw doubt on it after it had been acted on by justices and their clerks for so long.

- However, in developing critical thinking and analysis as one of the tenets of legal practice, a competent lawyer has to read widely text books, journals and reports which may be important sources of authority.
- These sources may not necessarily be legal. They can be on medicine, technology or social sciences.
- It helps in developing critical thinking which is very important not only for lawyers but for everyone who has attended university.
- In certain universities like Cape Town, critical thinking is one of the compulsory courses for beginners of undergraduate degree courses.
- In reading text books, journals or reports the following must be focused on:
 - Author(s) of the books or articles;
 - Publisher and year;
 - Table of contents;
 - Index/glossary
 - References.
- This is to help you look out for what to read and ensuring citations are proper.
- Text books, journals or reports may only be persuasive in identifying the law and not binding.
- For instance reform of the Occupier's Liability of England of 1957 followed a study by the Law Reform Commission, which conducts studies for purposes of reforming the law.

- There is the Law Reform Commission in Uganda.
- The weight of authority of a text or periodical depends on when it was published or its use in other texts.
- Under common law it is only dead authors who should be used as authorities.
- Authors who are still alive should not be quoted as authorities because of the possibilities of changing their views.
- Reservations over sources of living authors are based on the following grounds.
 - If there are conflicting views, which leave courts with discretion to accept or reject such sources of authority. (**See Greenlands (Ltd) v Wilmshurst and Ors (1913) 29 TLR 685** (This authority should be photocopied as this report is not in IUIU))
 - Thought they be fertilizers of thought they may not be based on refined process of argument as in case law.
- Academic authors are regarded as pilgrims to the endless road to unattainable perfection.
- **Spiliada Maritime Corporation v Consulex Ltd [1987] AC 460 and R v Shvpuri [1986] 2 All ER 334** explains further why judges may be skeptical of some authors:
 - Editors sometimes change the meanings of the original author.

- Publication is sometimes for publicity of the author without the author having the rudiments of expertise in the field of writing.
- Books by the dead represent undisputed knowledge of a subject.
- However there is a contrary view in the case of **Bastin v Davies [1950] 1 All ER 1095**, where the judge was of the view that where the reference is well known and has never been dissented to by a judicial decision, it can be a source of authority.
- It would be wrong to throw it overboard if it has been acted on many times.
- According to Lord Denning, text books are not digests of cases but state principles of the law. (See 1947) 63QLR 516
- They are written by people who have studied the law as a science with more detachment than men engaged in busy practice.
- What about encyclopedias like Halsbury Laws?
 - These are important sources of legal principles but either they are sparingly used as sources of authority, like in **Watson v Thomas S. Witney & Co Ltd [1966] 1 All ER 122**, skipped or if the principle stated therein is not accurate.
 - In the former Court rejected a reference in Halsbury Laws of England because it was not accurate.
- In **R v Oxford Crown and Another ex parte Smith (1990) 2 Admin LR 395** court was of the view that this litigation would not have been instituted if it was cited in the Planning Encyclopaedia.
- In the **Commission for the New Towns v Cooper (GB) Ltd [1995] 2 All ER 929**

- In other words, some of these publications may have gaps or inaccuracies on positions of law.
- **Latin maxims may be a source of law.**
- Computer Data Base: whether they can be cited as authority
 - Read the case of **Roberts Petroleum Ltd v Bernard Kenny Ltd [1983] 1 All ER 564**
 - In this case the HL was of the view that internet sources may be cited only if:
 - The authority deals with a principle which is not only binding on the court but is also not covered by a case contained in the recognized reports.
- Citation of statutes:
 - Statutes have long and short titles. A short may like this (The Evidence Act (year) Cap
- Keeping updated
 - Lawyers must always be updated with relevant case law and legislation either by following cases on appeal or getting government gazettes. Why?
 - Case law keeps changing and a lawyer must be conversant with developments
 - In **Stokes v Sayers [1987]** The Times 16 march, it was emphasized that case law be under constant review especially as there may be developments which make the appeal a foregone conclusion. This may entail withdraw of the appeal or resisting an application for withdraw.
 - Lawyers should have a system in place to enable updating developments in case law.

- In Uganda, there may not be a system of updating in law save for legislation in the government gazette. In England are weekly law journals or law society's gazette. (Find out the system in Uganda...)
- Conclusion
 - Always read law reports, journals, textbooks and statutes when searching the law.
 - Square and round brackets have meanings. If a reference to a date is in square brackets, the date is an essential part of the reference.
 - If in round brackets it is not essential in the reference.
 - Always be careful when citing text books and journals. They are not authorities like statutes or case law.
 - Use short title when citing statutes.
 - Keep updated with legal developments and therefore, you must use the library, read gazettes and do not forget to use electronic sources.
- Exercises
 - Outline the difference between square and round brackets in case citation.
 - What is the authoritative value of text books and journals?
 - What are the different ways of citing statutes?

Exercise: Read

- https://en.wikipedia.org/wiki/Case_citation which outlines the different methods of case citations in different countries.
-

Legal Research and how to find the law

Objectives of the lecture

- Introduce and familiarize student to the library resources
- Training students on the tools for conducting legal research and how to find the law

Introduction

- Research is an integral part of the study of law and legal practice, and other disciplines, and therefore unavoidable.
- There is a saying in law that nobody knows the law, it is in the books and lawyers only know where to find it.
- What are the implications of this saying?
 - A lawyer or a law student must always be engaged in legal research.
 - Legal research is of the tenets of legal training and practice. It is the books where the law can be found.
 - Therefore, a lawyer has to be updated about the current state of the law, so is a writer.
 - When writing a book, you need to conduct literature review to acquaint yourself with the current state of knowledge.
 - In conducting research, you have to be guided by the following:
 - Primary and secondary source.
 - Basic legal research and tools for Legal Writing: citation, reference, plagiarism

Convene library consultations in assorted groups of students across sections

d) Training regarding the e-resources

e) Class exercise

Recommended readings

- (i) 'Research: Sources of Law' from material available online on
<http://www.aallnet.org/sis/lisp/research.htm>,
<http://www.library.uq.edu.au/law/research/strategy.html#3> and
<http://www.vtstutorials.ac.uk/tutorial/law/?sid=2485947&itemid=12969>.
ii) James Holland and Julian S Webb, Learning Legal Rules, pp 24-31



- Legal research is the process of identifying and retrieving information necessary to support legal decision-making. It may involve:
 - Complex legal issues applied to specific facts requiring complete answers for clients that pay for your expertise.
 - He who wants to be a lawyer must not just prepare passing the examination.
 - Must have the skill of using legal materials.
 - Knowledge about the current state of the law either in statutes, reported or unreported cases.
 - Unreported cases are important sources of law but must be brought to the attention of the judge.
 - Must have knowledge about the law library and how to use it.
 - Must always have organized legal materials and properly stored.
 - Must always have first hand sources. The implications of this are:
 - When reading, you do not have to write volumes of notes or depend on lecture notes.
- You have to make your own notes, and have always to verify them with actual authorities as soon as you can.
 - Do not depend on another man's notes. They may be better in themselves but they may be worse for the learner.
 - You have to be careful when reading commentaries, summaries, which should be avoided as much as possible.
 - You cannot become a lawyer by trusting such sources and if you make use of them to pass an examination, you cannot be a lawyer worthy the name.
- Do not confine yourself to text books. They are not sources of law, it is found in statutes and cases.
 - A text writer may cite the law, but he or she expresses an opinion which has no legal force.
 - This is because such an author may have wrongly cited the law.
 - Therefore you must be familiar with law reports and statutes.
 - As a student you must be familiar with catalogues.
 - They constitute the tools of a lawyers' trade.

- Their masterly skills will make life of a law student, teacher, researcher or judge much better.

Why conduct legal research

- To get knowledge or answers to legal problems.
 - This means that a research must have a researchable problem.
 - Therefore you cannot start research without an issue.
 - This is important when reading case law or statutes or appraising oneself with the laws.
- A lawyer's competence depends on the legal knowledge he or she has. Therefore research becomes part and parcel of a lawyer's trade.

What is your research agenda? To find out

- Who the parties are?
- What is the subject matter of legal concern? (The legal problem)
- What is the cause of action? You must be certain of the facts.
- What are the issues
- What remedy is being sought?
- What legal authorities you intend to use?

Where do you start to research?

- The starting point is the law library and how to use the legal sources (See Glanville William, chap 3)
- In conducting legal research, the following must be noted:
 - Accuracy
 - Catalogues and their purposes
 - Before computers became dominant as sources of information libraries have catalogues, which indicate the contents of a library. They may be by author or index.
 - Catalogues by authors are arranged alphabetically and the index is arranged by general subject. What is an index
 - Catalogues constitute the first step in identifying sources.

- Entries may either be class marks or decimal. (May be invite a librarian to explain these classifications)

Class marks

- They are number and letter codes on the spine labels of print library materials such as books and journals.
 - They are used to organize books according to subject area.
 - Class marks group items of a similar subject together, which makes browsing the shelves easier.
 - They are numbered according to the subject, e.g. 340 is the number for law.
 - The number is followed by 3 letters, representing the author's or editor's name or the book title.
 - For example, a book on legal method by Ian Mcleod is labeled 340.5MCL.
 - The classification used at IUIU is the Dewey Decimal Classification (DDC) scheme work.

Functions of classmarks

- Enable a student to quickly find both particular items and whole subject areas.
- Classmarks may be used to browse materials on the shelf, or browse virtually using the classmark options on the online library catalogue.
- If a catalogue record for a book has no classmark, it usually means that it's an electronic book; click on the link within the catalogue record and login with your University credentials for access.

Sources of law

- Statutes,
- Case Law,
- Customs
- Case books
- journals

Searching Law Reports: How to find a law report

- According to Glanville William, finding a law report starts with the index, which indicates the reference to the case at all stages.

- You will find an index outlining the report(s) in which a judicial decision is indicated.
- In England as we have already seen are a number of reports. One of them, the Weekly Digest, which publishes digests of new cases on a weekly basis.
- Such a digest will lead you to identify new authorities.
- There is also the All England Consolidated Tables and Index, the Current Law Citators covering all cases for a specific period. The English and Empire Digest covers old cases.
- There are many indexes and please refer to Glanville William at p41-44 for further reading.
- Two pages references and their importance
 - For instance you might find in a law report cases cited twice in the same report. E.g. [2017] 1 QB 1, 8 or [2017] 1 QB 1 at p8.
 - The first page contains the beginning of the case and the second stage has the dictum from which the real reference is being made.
 - This is important for citations. The second indicates the exact page from where to find the issue under discussion.
 - Therefore you always have to bear this mind when writing whether a legal brief or a research paper.
 - Square and round brackets.
 - As we have seen, brackets indicate the usefulness of time. A square bracket is an indicator that the year is very important for searching the source while under a round bracket, the year is not important. For instance you might find a law report cites as follows: Stanley v Powell (1890) 60 LJQB 52 and Stanley v Powell [1890] 1 QB 86.
 - For the former, the year is not important, it is the volume and journal from where to find it. While the latter, the year is very crucial.
 - Therefore when citing cases, you have to be careful. Why? The way a source is cited determines its weight as an authority.
 - There is an index of the EA Law Reports, HCB and other law reports which you can always make use when searching for legal authorities.
- **Statutes**
 - There is an index of the Laws of Uganda. It is arranged alphabetically. This index helps you to find out the law in force.

- The one in the library is 2006 and requires updating. In reputable libraries, you will find all repealed statutes deleted and if just the amended, the parts affected are deleted.
- This is to help a researcher to omit such statutes lest he or she might think they are still authority.
- Another source of sources on legislation are gazettes. All principle and subsidiary legislation is published in the government gazette at Entebbe.
- Subsidiary legislation appears as legal notices.
- **Customs**
 - The repugnancy clause: **R v Amukeyo** (supra)
 - In Tanzania, customary law has been codified.

Social science research

- Law is not in the air. It is part of society and governs social relations. Therefore, there is much to gain out other research methods
- Disciplinarity, multi, inter and trans-disciplinarity
 - Disciplinarity and specialization of labour and dichotomization and fragmentation of knowledge.
 - “oneness in our consciousness and disciplinarity. Oneness is the link between humans, animals, plants and the galaxy justifying the merger of the fragmented knowledge
 - Disciplines are unable to provide sufficient explanation of the complex and interconnected social, ecological and physical phenomena and globalization.
 - Therefore multi- inter and trans-disciplinarity are methodologies for fusing together different perceptions and conceptions.
 - It is on this basis why we have study social research methods. This is because a law student may engage in field work or a subject which requires enrichment from other disciplines.

- Defining a research problem.
 - Whether legal or non legal research, a researcher is prompted to conduct a research because there is a problem which needs solutions.
 - It is this problem which forms the basis of a research. It either a problem which has not been researched on, it is new or the existing knowledge is not sufficient to deal with the issues.
 - The identification of a problem may be based on personal experiences, a social-legal problem, or on literature available which does not provide sufficient answers to certain issues.
 - For example, is the problem of mob justice, the high level of road accidents in Uganda etc.
 - A problem statement may be set in form of a question: For instance; why is mob justice on the increase yet we have courts and law enforcement agencies, which should address this problem?
- Methodology
 - This is how the research is conducted.
 - Is it going to basic research which will involve fieldwork, or it is going to be empirical, doctrinal? This may define the methods used in the study.
 - Is t going to be qualitative or quantitative?
 - How is the data to be analyzed?
- How do you deal with finds in the study?

SOME CONCLUSIONS CONCERNING THE EFFECTIVE USE OF **EXTRINSIC AIDS**

- As interpreting a statute is a question of law and as all extrinsic aids such as the internal history of its enactment and contemporaneous facts and conditions) ought to be judicially noticed, courts should be permitted to consult and evaluate any such aids in determining the statutory meaning in any case.
- No rules defining what may be consulted in reaching the meaning of a written instrument-whether the parof evidence rule, ordinary rules of evidence or special rules relating to interpretation of deeds and wills or other writings-should be considered even by the closest apparent analogies to be binding precedents in construing a statute. Although the interpretation of statutes and other writings have certain similarities, essentially they are different problems.
- Materials extrinsic to a statute should be consulted not only when making a choice between two or more possible meanings of the text itself, but in checking up an apparently plain and explicit meaning, in finding other possible meanings not apparent in the text, and in applying the chosen meaning to the case at hand.
- No exclusionary rules differentiating types of extrinsic aids should deter courts from considering and evaluating such aids in relation to the particular problem. Of course, opinions of legislators are of little weight; but statements of fact concerning evils to be remedied, contemporary conditions, and the objectives of the legislation, as found in debates or in reports of committees or the journals of either House, though always admissible, are significant only insofar as they shed light upon the particular problem of statutory interpretation.
- Whenever the court is to leave to the jury not the interpretation of a statute (i. e., choosing from possible meanings thereof), but rather the application of the meaning of ordinary words or phrases in a statute to the particular facts of the case, every reason for following rules of evidence in determining what

extrinsic aids should go to the jury is again cogent, since a jury may be misled as much by this kind of evidence as any other. Although it is seldom that this question of the use of extrinsic aids by a jury arises, the problem does present itself whenever a judge believes that the jury can satisfactorily determine the meaning of popular terms.

- That a plain and explicit statute needs no construction and that extrinsic aids cannot be admitted for the purpose of contradicting a plain meaning are rules that ignore obvious difficulties in distinguishing "contradicting" from "explaining". Finding from extrinsic facts a contextual meaning which the words will fairly bear, and which better accords with the statutory purpose, brings to light an ambiguity in language which was assumed to be clear and explicit. In such a case
 - extrinsic aids do not contradict the plain meaning but show that the
 - meaning was never plain. If, as is often said, the phrase "plain and
 - explicit meaning" indicates that it is the only meaning the words will
 - bear, then the rules suggested beg the question, because they shut out
 - the use of the broadest contextual background as determined by extrinsic
 - aids. All possibilities of the existence of other reasonable meanings
 - are therefore cut off. This becomes even more distressing, since by such
 - reasoning neither meaning nor purpose can be checked whenever there
 - is an apparently plain meaning. Indeed, one of the simplest forms of
 - ambiguity is inconsistency between meaning and purpose. Thus the
 - theory of all satisfactory construction—that all interpretation must
 - further so far as possible the objectives of the legislation—is curtailed,
 - if a thoroughgoing, factual search for objectives in extrinsic aids is
 - prevented. A check-up, on the basis of extrinsic aids, may well show
 - the purpose of the legislature to be somewhat different from what the
 - text indicates; and when this occurs, the obvious meaning is no longer
 - plain, as it is now inconsistent with actual legislative objectives. In
 - short, extrinsic aids may not only show that what appears to be plain is
 - really ambiguous, but that another meaning more consonant with the
 - immediate ends of the legislation is more sound and satisfactory. It
 - follows that the current belief—giving an obvious meaning such
 - superiority over a sensible, contextual meaning as to preclude consid554
 - *UNIVERSITY OF PENNSYLVANIA LAW REVIEW*
 - eration of the statutory purpose as gleaned from extrinsic aids—is
 - erroneous.

- 7. An obvious meaning should naturally be regarded as superior
- to all others, if after a survey of all extrinsic materials, it is more consistent
- with all other parts of the statute and with the legislative objectives
- than any other. Only then should it be said that a plain and
- explicit meaning can neither be contradicted nor explained away.
- 8. If the literal or grammatical meaning of the language is consistent
- with both the plain purpose of the statute and all other parts
- thereof, common sense suggests that no extrinsic evidence could possibly
- be of such weight as to render ambiguous a meaning apparently so plain.
- But at this point courts must deal with the problem of the weight of the
- evidence rather than with any attempt at excluding it from consideration.
- In each case, therefore, the persuasiveness of an apparently plain meaning,
- as compared with that of other probable meanings, does not involve
- a question of exclusion or non-exclusion of extrinsic aids, but rather
- one of evaluation of such aids in relation to all aspects of the specific
- problems of interpretation in the case at hand.
- 9. Within these limitations and subject to the qualification that the
- meaning finally chosen must be one that the statutory language **will**
- honestly bear, courts on choosing the most desirable construction, should
- exercise the widest possible freedom with regard to the use of extrinsic
- aids in order (i) to determine the precise subject-matter of the legislation;
- (2) to penetrate as deeply as possible into the contextual implications
- of the language; (3) to obtain the clearest possible picture of
- legislative objectives; and (4) to facilitate applying such meaning more
- intelligently and with greater exactitude to the case at hand.
- io. To set down rules of exclusion (even with respect to personal
- opinions of legislators in debates on the floor of either House) or to
- evaluate particular types of extrinsic aids, in and of themselves, is
- misleading,
- even if it could be done. It is also submitted that courts should
- base the use of exclusion of particular types of extrinsic materials
- rather more on their immediate cogency to close issues of meaning in
- each case than on the intrinsic value of the particular type of material.
- ii. Finally, it would seem that if the techniques suggested herein
- be followed in the use of materials extrinsic to a statute in the attempt
- to find and apply its meaning, statutory interpretation will become less
- a matter of applying general canons of construction and more a matter
- of following definite indications of meaning extant in the history of the
- *INTERPRETATION OF STATUTES*
- legislation. Speculating as to statutory meanings and objectives will

- be replaced by a more exact and effective carrying out of legislative will.
- Mr. Justice Holmes tells us, however, that basing "speculations
- about the purposes or construction of a statute upon the vicissitudes of
- its passage" is a delicate business.¹⁴² But it is an equally delicate
- business to base statutory meanings on general canons of construction
- and present exclusionary rules governing the use of extrinsic aids. At
- all events the attempt must be made; and it can be successful, without
- sacrificing any of the safeguards that rules of exclusion now attempt
- to secure, if it is remembered that no meaning is proper if it is one the
- words will not bear by fair use of language.
- That contextual techniques for interpreting legislation are in the
- nature of things finely spun processes is no reason for disregarding them
- in construing complicated legislation. Techniques for the use of extrinsic
- aids or evidence should therefore aim to encourage courts to widen
- the contextual background of legislation and to bring to light situations
- where such evidence is likely to aid in statutory interpretation.
- 142. *Pine Hill Coal Co., Inc. v. United States*, 259 U. S. 191, 196 (1922)
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LEGAL REASONING

Introduction

- To enable students understand what legal reasoning is about.
- To enable students grasp the techniques of legal arguments

What is legal reasoning?

- The skill to be creative
- An intellectual process of reaching a decision in a court action.
- It is about law in action, which is more important than the law in books.
- What happens in court is what really matters.

- The concept of legal reasoning is based on the American school of realism, articulated by Holmes:
 - Life of the law is not just logic but it is more of experience than theory.
 - It is about rationality and consistency.
 - Rationality and consistency depend on the socio-economic and political environment or personal interests of the judge, public policy
- In other words what is socially expedient is the experience not legal rules. (syllogism)
- Though Holmes talks about training of a lawyer is on logic and the language of courts is logic, his emphasis is on practice.
- Holmes argues that even though judicial reasoning is based on explicit formulation, there is also an implicit attitude on the part of the judge.
- Holmes and Dworkin share the belief that rules are inadequate in providing a model of legal practice.
- Facts are the basis for defining the legal rules which are constantly being made and remade.
- But what lies behind practice is the attitude of the judge based on social, economic and political features, and what may be fair and just.
- Judges make decisions based on standards or ideas which exist outside the texts containing rules which go into the melting pot, which helps in defining the law to be applied to a given situation. These standards are policies and principles, according to Dworkin.
- What this means is that judges are aware of the fact that their individual values and preferences may impact on their judgment.”
- In a lecture on Leadership in the Law: What is a Supreme Court For, the author argues that the panels of judges selected may affect the outcomes.

- This is why all judges of the Supreme Court sit together to hear an appeal.
- The principle Dworkin is emphasizing is one which judges must take into account, if it is relevant.
- Principles have dimensions and rules do not in terms of weight or importance.
- What this implies is that legal rules though viewed as major sources of authority are always subject to qualifications in light of particular circumstances.
 - Read *R v R (Rape: Marital Exemptions)* [1991] 4 All ER 481.
 - This decision was based on principle of fairness and justice. In this case court had to decide whether between applying the principle which prohibits retrospective penalization and the interest of the wife in preserving her dignity by rejecting her husband's sexual advances. Court considered the latter although it would have also relied on the former.
- Law keeps changing making the applicability of existing rules problematic as the social context keeps changing.
- For example, the law of common employment in England was a hindrance to the development of the law of negligence. Courts were unwilling to open the gates wide to hold an employer liable when an employee suffered injury in

the course of employment, much as courts recognized that an employer was duty bound to ensure safety of his employees.

- It was not until 1948 when law of common employment was repealed and the law of negligence got defined in **Donogue v Stevenson**.
- However, much as syllogistic logic may be useful in testing validity of conclusions drawn from given premises, it may be inadequate as a method of reasoning, in a practical science such as law, where rules are not given but must be created.
- Thus politics, religion and prevailing economic environment play an important role in defining what is logical.
- Thus legal texts have to be interpreted and not just read.

What is syllogism?

- Syllogism ("**conclusion, inference**") means what can be inferred from social environment than from legal rules.
- It is a flow of an argument starting from the general to specific—i.e. something general from which a conclusion about something more specific may be drawn.
- Legally, it is derived from logic based on deductive reasoning to arrive at a conclusion based on assumptions which are asserted as true
- Syllogism starts with the law as the major premise, then facts as the minor premise and conclusion which is a result of application of the law to the facts.
- It involves:
 - Statement of the law (major premise: statutes and case law, human rights standards, international law).

- Statement of fact (the minor premise, which forms the judge's starting point when writing a judgment).
- Conclusion (which results from application of the law to the facts)
- Though facts constitute the minor premise, they have to be proved in court. They are the backbone of the case. They are the raw data consisting those that have been selected and classified in terms of legal categories.
- Always remember that true premises (facts) must be the basis of valid arguments and conclusions.
- Conclusions have no rules and there is now way one can tell what a judge will decide.

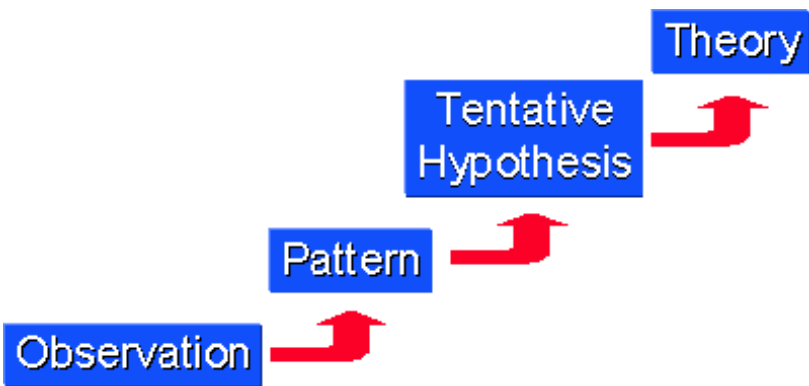
Methods of legal reasoning: induction, deduction and analogy

Logic and legal reasoning:

- In logic, are two broad methods of reasoning--the inductive and *deductive* approaches.
- It is argued that legal reasoning cannot be reduced to the classical rules of formal logic.
- However, legal reasoning must be logical and strive towards consistency in legal rules and judgments.
- Consistency in law requires application of the law equally to all and cases should be decided in the same manner.
- Legal reasoning also requires continuity in time by looking on to past authorities as a means of regulating stability.
- Legal reasoning also requires looking at both sides by weighing opposing claims whether expressed in legislation or factual arguments.

Inductive reasoning:

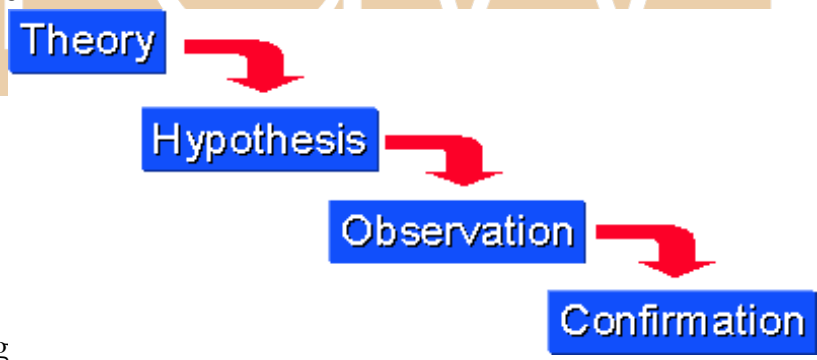
- Inductive reasoning is the opposite of deductive reasoning.
-
-

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- ```

graph BT
 Observation[Observation] --> Pattern[Pattern]
 Pattern --> Hypothesis[Tentative Hypothesis]
 Hypothesis --> Theory[Theory]

```
- Inductive reasoning is moving from specific observations to broader generalizations and theories.
  - It is a "bottom up" approach (please note that it's "bottom up" and *not* "bottoms up" which is the kind of thing the bartender says to customers when he's trying to close for the night!).
  - It begins with specific observations and patterns from which broad generalizations and explanations or theories are made.
  - This then enables the formulation of some tentative hypotheses that can be explored, which may end up in some general conclusions or theories.

Deductive reasoning:

- 
- ```

graph TD
    Theory[Theory] --> Hypothesis[Hypothesis]
    Hypothesis --> Observation[Observation]
    Observation --> Confirmation[Confirmation]
  
```
- Deductive reasoning is moving from the more general to the more specific.
 - It is a "top-down" approach starting with a general statement, or hypothesis, and examining the possibilities of reaching a specific, logical conclusion--from the general — the theory — to the specific.

- This might start with a *theory* about a specific legal issue.
- This is best explained by mathematical formula: $P=Q$ and $R=S$, then $P=S$
- Deductive reasoning begins with a major premise ($P=Q$) followed by a minor premise, ($R=S$) and conclusion $P=S$.
- What does this mean?
 - This is then narrowed down into more specific *hypotheses* that have to be tested.
 - This is narrowed down even further when *observations* are made to address the hypotheses.
 - A hypothesis enables one to make predictions and the observations made will establish whether the theory is correct.
 - Using the theory, it will be possible to predict its consequences.
 - This ultimately enables the testing of the hypotheses with specific data -- a *confirmation* (or not) of the original theories.
- Another example: All men are mortal is the major premise. Socrates is a man is a minor premise, Socrates is mortal is the conclusion.
- Or the earth is the source of life is the major premise. Humans are born is the minor premise. Humans die is the conclusion.
- All birds lay eggs (major premise) a chicken lays eggs (minor premise). A chicken is a bird (conclusion).

- Therefore, the conclusion is logical and true.

Differences between inductive and deductive reasoning

- Inductive reasoning, by its very nature, is more open-ended and exploratory, especially at the beginning.
- Deductive reasoning is narrower in nature and is concerned with testing or confirming hypotheses.

Analogy

- Analogy is a legal process by which comparisons and contrasts are made between different legal situations with similar features for purposes of explaining a point or driving a point home.
- For example using proverbs or a man falling with head first and survives, he can be described as a rock.
- A rock is an analogy. It is about using examples of similar situations to drive a point home.
- It represents a situation, which is “similar to” but not “the same as” as a simple proverb goes: “For example is not proof”.
- In law, you can make use of examples or experiences to strengthen an argument.
- In comparison with syllogistic reasoning analogy is about testing consistency, continuity, and the weighing of opposing claims and defenses.

Analogical reasoning takes the following forms:

- Comparing fact situation before the court with the fact situations of previously decided cases (precedent);
 - Precedent is the use of previously decided authorities to decide a case. A court decision is cited as an example or analogy to resolve similar questions of the law in subsequent cases.
 - Precedent is built on the doctrine of [Stare Decisis](#) ("stand by decided matters"), which directs a court to look to past decisions for guidance on how to decide a case before it.
 - This means that the legal rules applied to a prior case with facts similar to those of the case now before a court should be applied to resolve the legal dispute.
 - This is anchored in the assumption that one person is the legal equal of any other.
 - Thus, persons in similar situations should not be treated differently except for legally relevant and clearly justifiable reasons.
- Extraction from a previously decided comparable case of the principle upon which that case was decided; and,
- Application of that principle to the case at hand.
- It is generally recognized that each of these three steps is dependent upon the other two.
- However, the second step—the extraction of the principle of the previous case—is complicated by the fact that the principle expressly relied on by

the court in deciding the previous case is not necessarily binding upon future courts.

- Although reasoning by analogy is the primary form of legal logic, it may not necessarily be sufficient in compelling particular legal results.
- There is, indeed, a large area of indeterminacy in all analogical reasoning, since the criteria for selecting similarities and differences are left open to debate.

The doctrine of Judicial Precedent

- What is judicial precedent?
 - Like cases be treated alike.
 - Judicial precedent is derived from the Latin maxim *stare decisis*, which means courts are bound by those decisions made previously either by the high court or higher court.
 - *Stare decisis* is the foundation of the doctrine of precedent.
 - The essence of the doctrine of *stare decisis* is that in certain circumstances a decision on a legal point made in an earlier case must be followed.
 - It therefore means that
 - All courts are bound to follow decisions made by courts above them in the hierarchy; and,
 - Appellate courts normally are bound by their own past decisions.
 - An example is the decision in *Re: Schweppes Ltd Agreement* [1965] where one judge dissented but on the same day in a subsequent decision of *Re Automatic Telephone and Electric co Ltd's Agreement* [1965] that he followed the decision of the majority judges in a case he had dissented.
 - Thus in *Re Schweppes Ltd's Agreement* [1965] 1 All ER 195, the Court of Appeal, with Willmer LJ dissenting, ordered discovery of documents in a case involving restrictive trade practices.

- On the same day the same three judges gave judgment in a second case involving the same point – *Re Automatic Telephone and Electric Co. Ltd's Agreement* [1965] 1 All ER 206.
- Judgment in the second case was delivered by Lord Justice Willmer who simply said: 'If the matter were *res integra*, **(This term is applied to those points of law which have not been decided, which are "untouched by dictum or decision.")**
- I should have been disposed to dismiss the appeal in this case for the same reasons as those which I gave in my judgment in the previous case.
- It seems to me, however, that I am now bound by the decision of the majority in the previous case. In these circumstances, I have no alternative but to concur in saying that the appeal in the present case should be allowed.'
- This is in spite of his dissenting opinion.
- Original precedent
 - This is a new precedent meaning that there is no previous decision on a point of law to be decided by court.
 - An original precedent is based on analogy, which implies that court will use cases nearest to the case at hand but they are not binding.
- If there are similarities, court may decide that principle to apply. See the case of *Hunter v Canary Wharf and London Dockland Development Corporation*.

- The theory behind original precedent is that such a precedent was considered declaratory.

It was a mere declaration of what the law had been although this was the first time it had to be decided. E.g. *Donogue v Stevenson*.

- Under this theory, it is argued that court did not make a new law, but merely declared what the law had always been to create a new legal principle.

- Binding and persuasive precedent: A past decision is only binding under the following circumstances

- The legal point involved is the same as the legal point in the case being decided.
- Facts of the present case are almost similar to those of previous case.
- The earlier decision made by a higher court than the one making the decision or by a court of the same jurisdiction will be bound by its past decision.
- Only the ratio decidendi of the earlier case is binding.

- Persuasive precedent

- There are precedents that do not bind court, but out of persuasion, court may follow such a decision.

- Persuasive precedents may come from different sources

- Obiter dicta
- Dissenting judgments
- Decisions of lower courts: for instance the supreme court may use a decision of the high/court of appeal.
- Courts from other jurisdictions.

- The doctrine of precedent depends on law report.

- There is therefore need for the decisions of previous courts to be properly recorded.

- As we saw in the previous lectures, there is an Incorporated Law Council Reporting in England, which produces official law reports.
- In EA, it may be hard to point out which law reports are official.
- Unreported cases are also sources of authority but with permission of court in England as it was held in *Roberts Petroleum v Bernard Kenny Ltd* [1983]
- Precedents though binding but may be departed from if it appears right to do so.
- The rationale is that adherence to precedent may lead to injustice in a particular decision and may also restrict the proper development of the law.
- In spite of all this precedent stresses certainty in the law especially in criminal trials, contractual obligations and settlements of property and fiscal arrangements.
-
- Ratio decidendi and obiter
 - A judgment has the following components:
 - Material facts
 - Findings
 - The principles of the law applicable
 - The decision of court
- Only the essential principle of the law to the decision is what is called ratio decidendi.
- This is a rule expressly or impliedly treated by the judge as a necessary step in reaching a conclusion or
- A proposition of law which decides the case in light or in context of the material facts.

- Read the case of *Donogoue v Steveson, Ryland and Flecher* and identify the ratio decidendi.

- Statements of the law that are not relevant to the decision are obiter dicta.

Techniques used in handling ratios (see pages 161-167)

- Distinguishing
 - Where the material facts of a case are different from an earlier case, a judge may refuse to follow that decision.
 - Distinguishing is a major factor in allowing the doctrine of precedent to remain flexible.
 - Cases which may be questionable or unpopular may be restricted to narrow parameters by distinguishing them.
 - Distinguishing an earlier decision is simply a way of saying that it is irrelevant to the present facts.
 - It is therefore not a critique of the earlier decision and does not disqualify such a decision from being binding.
 - But there may be situations where court restricts a decision to its own facts, which may be distinguishing it from the present facts.
 - This was the case in *Jobling v Associated Dairies Ltd* [1981] 2 All ER 752, where the HS Lords did not follow its decision in an earlier case *Baker v Willoughby* [1970] AC 467, over which it was not satisfied on the state of earlier authorities.
 - This was based on the Practice Statement (Judicial Precedent) [1966] 3 All ER 77

- Following, approving and applying

An earlier decision is said to be followed in a latter case where the facts of the two cases are sufficiently similar for the judge in the latter case to be persuaded for the same principle of law to be applied.

Any court may follow a decision of any other court, but where the latter court is higher than the earlier one, the principle may said not simly to have been followed but to have been approved.

If later in a subsequent trial court finds an earlier decision attractive and the facts of the case fall short of being substantially the same but can be said to be not dissimilar, the later court may apply the earlier decision.

- Not following, doubting and overruling
- Though facts of an earlier decision may be substantially the same, court may decide not to follow such a decision.
- If depending on the hierarchical relations, court finds a decision is not attractive, the latter court may not follow such a decision.
- This may result in the earlier decision being doubted or disapproved.
- If a higher court finds a decision unsatisfactory either it was wrongly decided or should no longer be followed, is what is called overruling the earlier decision and therefore can no longer be used as an authority.
- Per incuriam
- Two opinions about what it means: In *Duke v Reliance Systems Ltd* [1987] 2 All ER 858, Lord Donaldson MR had this to say about per incuriam
-the doctrine of per incuriam only applies where [a court] has reached a decision in the absence of knowledge of a decision binding on it or a statute, and that in either case it has to be shown that had the court had this material, it must have reached a contrary decision...I do not understand the doctrine to extend to a case where, if different arguments had been placed before it, it might not have reached a different conclusion...'
- In another decision of *R v Simpson* [2003] 3 All ER 531, Lord Woolf CJ pointed out the following:

...The basis of per incuriam doctrine is that a decision given in the absence of relevant information cannot safely be relied upon. This applies whenever it is at least probable that if the information had been known the decision would have been affected by it...

However, none of the two versions may allow a decision to be declared per incuriam for not having been fully argued.

- The changed circumstances doctrine. This Doctrine is based on a legal rule which ceases to exist if the reason for its existence ceases as expressed in the Latin maxim CESSANTE RATIONE, CESSAT IPSA LEX.
- This doctrine is used in deciding whether a court will follow or depart from one of its own previous decision.
- However, Lord Simon in *MILIANGOS v GEORGE FRANK (TEXTILES LTD [1975] 3 All ER 801* argued that the Latin maxim does is not accurate in explaining the circumstances under which a rule may cease to exist.
- He gives the following reasons:
 - Courts bound by precedent are not free to disregard an otherwise binding precedent on grounds that the reason for formulating the rule in such precedent seems to the court to have lost cogency.
 - In reality the maxim is part of legal reasoning in cases which are distinguishable or where an exception is made to a principle legal rule,
 - Or where a rule has impliedly been overruled by a subsequent decision of a higher court or impliedly abrogated by legislation.
 - The changed circumstances doctrine is about a special form of distinguishing.
- The doctrine does not give powers to depart from previous decision, it is only the power to depart from a previous decision.
- The concept of obiter dictum
 - It is from Latin word “Dicere” meaning to say or “merely said and not strictly meant”
 - It is a by the way and is not an essential or integral part of legal reasoning. It has less weight than precedent.

- It is a judicial pronouncement upon which sufficient thought might not have been given though forms part of a judgment.
- It is merely a statement of the law, which does not fall within the meaning of ratio decidendi.
- In other words dictum is non authoritative judicial opinion on a non contentious issue and does not make an essential part of the court's decision.

It is outside the decision and is not part of the precedent and is not binding but may be persuasive.

- Obiter dicta may be gratis dicta or judicial dicta, but these expressions are rarely used.
- Gratis dicta are what are merely given away freely and therefore is of little significance, while judicial dicta may have persuasive force and may not be distinguishable from ratio decidendi.
- A good example of obiter dictum can be seen in the case of *HEDLEY BYRNE & Co Ltd v HELLER & PARTNERS* [1963] 2 All ER 575.
- A gave B a banker's reference about C. The reference is said to have been given without responsibility but it was relied on by B who extended credit to C. The reference was not accurate and B suffered financial loss.
- As obiter, the House of Lords decided that in principle there could have been liability in negligence for the misstatement, which resulted into financial loss.
- However, the disclaimer saved the defendants from liability.
- Court did not have to decide whether liability actually existed in principle. Though court went into details in discussing liability in negligence, it did not have effect over the decision court had to make.
- However, such obiter dicta may have binding effect on lower courts or
- If it is frequently cited with approval.

History of precedent

- The writ system
 - Writs were specific legal proceedings which were recognized under common law.
 - You could seek a remedy from court if that cause was recognized and that is when a writ was issued.
 - Writs and precedent: a decision from a writ was only applicable to the specific writ.
 - Writs were narrow and compartmentalized and only applicable to comparatively specific factual situation.
 - There was no generalization. There was nothing common.
 - If one decision is to serve as a precedent for another, they must have something in common even if they share it with no other cases.
 - Under the writ system, there was no commonality.

Vertical and horizontal dimensions of precedents

- The common law principle that all courts bind all lower courts is what is called vertical dimension of precedent. I.e. When a higher court makes a decision, all lower courts must follow it.
- In we have the magistrate court, high court, court of appeal and supreme court.
- Magistrate courts have no binding force but are bound to follow decisions of the high court and those higher up.
- Horizontal dimension of precedent means some courts bind themselves. For instance the high court decisions are binding on it, so are the CA and Supreme court decisions have binding force on themselves.

Are courts bound by their decisions? Read Ian Mcleod on Legal Method:

Chapters 10,11, 12 and 13.

- Generally yes, but not the high court when instance jurisdiction but may follow such decisions out of judicial of comity (courtesy).
- However, when exercising appellate jurisdiction, it may be bound.
- This was an issue of discussion in *Young v Bristol Aeroplane co Ltd* [1944] 2 All ER 293 where it was held as follows:
- Court is generally bound by its own in civil cases but this is subject to the following exceptions:

- Where court encounters two conflicting decisions of its own. In such cases, court cannot follow both decisions and must decide of which of the two it has to follow.
- Where the supreme court makes a subsequent decision which does not expressly overrule a decision of the CA but which the CA feels is such of a nature that the two cases cannot stand alongside each other.
- In such cases, the CA may decline to follow its own decision.
- If the decision was given per incuriam, court will not be bound by it.
- All courts with authority to bind others can overrule or depart from their own decisions where it is right to do so on the following grounds:
 - If it is wrongly decided and is overruled like in the case of *R v Howe* [1987] 1 All ER 771.
 - It is likely to lead to unfairness.
 - It has been subject of criticism by jurists, academics, judges and practitioners.

Students should read *R v Howe* (supra) and find out why it was overruled and *Khoroshondjan v Bush* which was overruled by *Hunter v Canary Wharf*.

In summary the following can be noted

- Precedents are useful in the following manner:
 - If there is commonality between two cases, then previous decision can be used to decide current decision
 - Provide predictability, stability, fairness, and efficiency in the law.
 - It provides notice of what a person's rights and obligations are in particular circumstances.

- A person contemplating an action has the ability to know before hand the legal outcome.
- It also means that lawyers can give legal advice to clients based on settled rules of law.
- Stabilize the law.
- Promotes expectation that law is just.
- Promote judicial restraint and limits a judge's ability to determine the outcome of a case in a way that he or she might choose if there were no precedent.
- Disadvantages
 - It is too rigid for two reasons:
 - The dilemmas of flexibility makes application of precedent problematic.
 - Inferior courts are made to follow decisions of higher courts.
 - Rigidity creates injustices.
 - The law develops at a slow pace. (the law of negligence: Read the following cases: [*Langridge v Levy*](#) [1837] 2 M&W 519 [*Winterbottom v Wright*](#), 1842 10 M& R 109 [*Heaven v Pender*](#), [1882-83] 11 QBD 503 *Home Office v Dorset Yacht Co Ltd* [1970] AC 1004, *Donoghue v Stevenson* [1932] AC 562 and in the judgment of *Caparo v Dickman* [1990] 2 AC 605)
 - The large number of reported cases makes it hard to find the relevant law.
 -

STATUTORY INTERPRETATION

What is statutory interpretation?

- the process by which courts **interpret** and apply legislation.
- **interpretation** is often necessary when a case involves a **statute or subsidiary legislation**.
- Statutory interpretation assumes importance when an act of parliament may be difficult to understand.
- In many cases, there is some ambiguity or vagueness in the words of the **statute** that must be resolved by the judge.
- Alternatively, where specific words in a statute have a particular meaning but they are not clear, ambiguous or are vague.
- Or each word could give different meanings.
- Hence, without the statutory interpretation, judges would have trouble in deciding their judgments in deciding a case.
- Principles of statutory interpretation are not any different from ordinary principles of linguistic communication.

Interpretation may vary and difficulty and the following factors are responsible:

- The draftsman may refrain from using certain words that he or she regards as necessarily implied. The problem here is that the users may not realise that this is the case.
- The draftsman may use a broad term ("a word or phrase of wide meaning") and leave it to the user to judge what situations fall within it.

- Ambiguous words may be used.
- There may be unforeseeable developments.
- There are many ways in which the wording may be inadequate. There may be a printing error, a drafting error or another error.
- It is notable that the general methods of statutory interpretation are not themselves regulated by Parliament, but have been developed by the judges.
- The Interpretation Act 1978, which from its title might seem to fulfil such a function, has the comparatively unambitious aim of providing certain standard definitions of common provisions, and thereby enables statutes to be drafted more briefly than otherwise would be the case.
- Modern statutes commonly include "definition sections" in which the meaning of words and phrases found in the statute are explained, either comprehensively (X "means" ABC) or partially (X "includes" ABC).

Principles governing interpretation and construction:

The meaning of a word is a question of fact while its legal implications is a matter of law.

- In other words, a proper construction of a statute is a question of law. Usually a question of fact is for the trial court while the CA only addresses a question of law.
- No court has powers to vary the meaning of words whether in a statute or subsidiary legislation. Even if a rule or piece of legislation is unjust, courts have no powers to interpret it otherwise.
- Since a particular interpretation would also become binding, it became necessary to introduce a consistent framework for statutory interpretation.
- In the construction (interpretation) of statutes, the principle aim of the court must be to carry out the "Intention of Parliament".

- Changing an unjust piece of legislation is for parliament to do not courts. Words of parliament are authoritative. It is the meaning attached to these words which is to be determined.
- Parliament normally has a broad purpose, which has to be used in guiding interpretation. It is this purpose, which constitutes the context rule.
- Context
 - Meaning of a word may be in its context. Therefore when reading a statute, it is always important to read the section with interpretation of its meaning given may be in context

Tools of statutory interpretation

- To find the meanings of statutes, judges use various tools and methods of statutory interpretation, including
 - traditional canons of statutory interpretation,
 - legislative history, and
 - purpose.
- Courts may apply rules of statutory interpretation both to legislation enacted by the parliament or subsidiary legislation and regulations.
- Common law developed three main rules (plus some minor ones) to assist them in the task. These are the [Mischief Rule](#), [Literal Rule](#), and the [Golden rule](#).
- **Presumptions**
- **Statutes may have presumptions which help in interpretation and construction of statutes; for example**
- Statutes may be presumed to incorporate certain components, as Parliament is "presumed" to have intended their inclusion.^[1] For example:

- Offences defined in criminal statutes are presumed to require mensrea (a guilty intention by the accused), Sweet v Parsley.^[2]
- A statute is presumed to make no changes in the common law.
- A statute is presumed not to remove an individual's liberty, vested rights, or property.^[3]
- A statute is presumed not to apply to the state.
- A statute is presumed not to apply retrospectively (whereas the common law is "declaratory", Shaw v DPP).^[4]
- A statute is to be interpreted so as to uphold international treaties; and any statutory provision which contravene EC treaties are effectively void, Factortame.^[5]
- It is presumed that a statute will be interpreted ejusdem generis, so that words are to be construed in sympathy with their immediate context.
- Where legislation and case law are in conflict, there is a presumption that legislation takes precedence insofar as there is any inconsistency. In the United Kingdom this principle is known as parliamentary sovereignty; but while Parliament has exclusive jurisdiction to legislate, the courts (mindful of their historic role of having developed the entire system of common law) retain sole jurisdiction to *interpret* statutes.

(A) THE RULES OF STATUTORY INTERPRETATION

The Literal Rule

- The literal rule is the first rule which is the least problematic method in interpretation.

- It was popular in the eighteenth and nineteenth centuries.
- The literal rule followed an increasingly strict view of the words of a statute: if the case before them was not precisely covered they were not prepared to countenance any alteration of the statutory language.
- One of the leading statements of the literal rule was made by Tindal CJ in the *Sussex Peerage Case* (1844) 11 Cln & Fin 85:

- "... the only rule for the construction of Acts of Parliament is, that they should be construed according to the intent of the Parliament which passed the Act. If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their natural and ordinary sense. The words themselves alone do, in such case, best declare the intention of the lawgiver."

- Under this rule a judge just considers what the legislation actually says by looking at the plain, ordinary, everyday meaning.

- In *Brutus v Cozens* [1972] 2 All ER 1297

This was a case of whistle blowing on a sports ground, which whistling was so irritating to the spectators and the whistler was arrested and charged with insulting behavior in breach of the peace. The trial court dismissed the charges of appellant's behavior being insulting, hence this appeal to the Divisional Court which convicted the respondent. The case proceeded to the HL and one of the issues was the meaning of the word "insulting".

Court used the ordinary meaning of the word as the issue of fact, was whether the words, behaviours of the appellant were insulting.

-
- The literal rule is further discussed in two other cases:
 - *Whiteley v Chappell* (1868) LR 4 QB 147.
 - What did Lord Esher MR state in *R v Judge of the City of London Court* [1892] 1 QB 273?

- The literal rule was favoured by the Law Commission for a variety of grounds:
- It encouraged precision in drafting:
- Should any alternative approach be adopted, an alteration of the statutory language could be seen as a usurpation by non-elected judges of the legislative function of Parliament, and other statute users would have the difficult task of predicting how doubtful provisions might be rewritten" by the judges.
- The main advantage of the literal rule is that it fits easily in the constitutional principle without causing any problems.
- The judge gives effect to the grammar or the technical meaning of the words; he must also determine the extent of the general words mean.

Short comings

- It may be hard to get the ordinary meaning anymore as illustrated in **Whiteley v Chappell [1868] LR 4 QB 147.**
- **In this case a statute made it an offence "to impersonate any person entitled to vote". The defendant used a voting card of a deceased person.**
- The defendant had pretended to be a person whose name was in the list but was already dead.
- The statute only required a person with voting rights to be a living person to be entitled to vote.

Court used the literal rule and the defendant was acquitted, since a dead person is not, in the literal meaning of words, 'entitled to vote'.

- **The decision discredited the literal rule actually for absurdity in such cases.**

- **Therefore, the literal rule was not a good rule to follow as it provide only one interpretation.**
- Besides that, the intention of the legislature would not be shown if the judges would follow this rule. On the other hand the literal rule was criticized by the Law Commission (1969) on the ground that:
- Judges have tended to excessively emphasize the literal meaning of statutory provisions without giving due weight to their meaning in wider contexts.
- To place undue emphasis on the literal meaning of the words is to assume an unattainable perfection in draftsmanship.
- It ignores the limitations of language.
- Lastly, it leaves little room for the judicial law making.

THE GOLDEN RULE (law of reciprocity (do ut des= I give so that you will give in return))

- A court may depart from the ordinary meaning where that would lead to absurdity. In *Grey v Pearson* (1857) 6 HL Cas 61, Lord Wensleydale said:
 "...the grammatical and ordinary sense of the words is to be adhered to, unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified, so as to avoid that absurdity and inconsistency, but no further."
- This became known as "Lord Wensleydale's golden rule".
- It only applies where the words are ambiguous. An interpretation that is not absurd is to be preferred to one that is. An example is *R v Allen* (1872) LR 1 CCR 367. (Look it out on the internet)

Its background

- It has a moral value and is based on ethical considerations. It may any of the following:
 - One should treat others, as one would like others to treat oneself.
 - One should not treat others in ways that one would not like to be treated.
 - What you wish upon others, you wish upon yourself
- The moral value has religious background is derived from the saying that **Do unto others as you would have them do unto you.**
- Read article on golden rule found at <http://www.iep.utm.edu/goldrule/> Read for class discussions
 - In this rule, absurdity is avoided to give abhorrent result. The golden rule probes the intention of parliament and helps to close the lacuna or loopholes in the law.
 - The rule call for critical and creative thinking and this enable judges to add or change the meaning of the statutes anytime.
 - This of course may be in breach of the doctrine of SoP. However, it is well known principle that judges make law under the doctrine of precedent.
 - They are able to do that in the interest of justice and fairness
 - This rule would indirectly make the judge to have the role to make the law.
 - Thus, the separation of power would be avoided in this kind of circumstances.

- Lastly, the judges would also be able to bring in the subjective case such as the morality and prejudice.
- Before resorting to the golden rule, the court must be satisfied about the difficulties arising out of the literal rule.
- This rule is only used where the literal rule leads to absurdity, as was the case of *Whitely v Chappell* (supra).
- **The golden rule is used to probe what the statute should have said or meant rather than what it is actually already stated there.**
- **There are two versions of golden rule.**
 - **One which is narrow in meaning; which is only used where there are two apparently contradictory meanings.**
 - The other version, is the wider meaning, where it is resorted to when there is only one possible meaning to a provision.
- The Law Commission (1969) noted that:
 - The rule provided no clear means to test the existence of the characteristics of absurdity, inconsistency or inconvenience, or to measure their quality or extent.
 - As it seemed that "absurdity" was in practice judged by reference to whether a particular interpretation was irreconcilable with the general policy of the legislature "the golden rule turns out to be a less explicit form of the mischief rule".

1. THE MISCHIEF RULE

- The mischief rule is contained in *Heydon's Case* (1584) 3 Co Rep 7, a landmark decision, in which the rule was first used for interpretation of statutes.

- According to this rule, while interpreting statutes, the problem or mischief that the statute was designed to remedy should be identified and then a construction that suppresses the problem and advances the remedy should be adopted.
- It was stated in Heyden's case that judges should:
 - Consider what the law was before the Act was passed;
 - Identify what was wrong with the law;
 - Decide how Parliament intended to improve the law through the statute in question;
 - Apply that finding to the case before the court. This was a sincere 16th century attempt to discover the intention of Parliament and to apply it to cases before the courts.

In using the mischief rule court inquires in

- What was the mischief and defect for which the common law did not provide.
- What remedy Parliament resolved and wanted to cure the disease.
- The true reason of the remedy;
- and then the function of the judge is to make such construction as shall suppress the mischief and advance the remedy.

The importance of the mischief rule

- The mischief rule as laid down Heydon's case is known as the most flexible rule and it is established in the as a "rather more satisfactory approach" than the other two established rules.

- It is used where there is still ambiguity even though the literal rule and golden rule may be used.
- However, this rule goes much further than the golden rule in the sense of the rule goes further in investigating the position of the statute holistically and allows courts the freedom in the construction of statutes.
- When using the mischief rule court looks into the court's objective and purpose of the statute, the intention of the legislature rather than depending on the words before them.
- The rule allows judges to choose between the different meanings of the statutory language or infer into the statute a small number of words.
- **It is therefore a flexible rule, which can be applied in many cases.**
- The mischief rule was the product of a time when statutes were a minor source of law by comparison with the common law, when drafting was by no means as exact a process as it is today and before the supremacy of Parliament was established.
- The mischief could often be discerned from the lengthy preamble normally included.

The difference between the rules:

- The plain meaning (or literal) rule and the mischief rule, the golden rule is not, in a strict sense, a compromise between them.
- Like the plain meaning rule, the golden rule gives the words of a statute their plain, ordinary meaning.

However, when this may lead to an irrational result that is unlikely to be the legislatures intention, the golden rule dictates that a judge can depart from this meaning.

- Where a word has more than one meaning, the judge can choose the preferred meaning; but if the word has only one meaning, but applying such meaning would lead to a bad decision, the judge can apply a completely different meaning.

- The mischief rule aims to interpret statute to what it meant regardless of the wording, by referring to any previous statutes for the same purpose and by looking at the intention of parliament for improvements in the law.

In *Magor and St Mellons RDC v Newport Corporation* [1950] AC 189, Lord Denning had this to say about the mischief rule:

‘We sit here to find out the intention of Parliament and of ministers and carry it out, and we do this better by filling in the gaps and making sense of the enactment than by opening it up to destructive analysis.’ What do you think he meant by this? It was better to interpret statutes in a way, which carries out Parliament’s intention than to be so restricted by the exact wording that this is not achieved. In contrast to *Fisher v Bell*, where the purpose of the legislation was to prevent the sale of offensive weapons was defeated, the courts have been seen on occasions to go out of their way to enable a statute to work.

- However, this rule of construction is of narrower application than the golden rule or the plain meaning rule, as it can only be used to interpret a statute and, strictly speaking, only when the statute was passed to remedy a defect in the common law.
- The mischief rule was regarded by the Law Commission, which reported on statutory interpretation in 1969, as a "rather more satisfactory approach" than the other two established rules.

Purposive Approach

- In statutory interpretation, there is purposive approach, which is widely used in interpreting statutes rather than the literal approach.
- The purposive approach rejects strongly on judges limitations on searching the meaning of the literal meaning of the word in the legislation itself.

- The approach enables the judges to look beyond the words of statute in search of the reason of enactment and from there the meaning of the word would be construed on the purpose of such enactment and as to give it effect.
- Legislation may set out the general principle and the fine details would left to future to fill in the gap by the judges later on in later cases.
- Hence, the purposive approach makes sure that it does not only cover the future but also the present.
- In order for the judges to interpret the statutes accurately, they must understand why the Parliament passed the statute then from there the judges would be able to determine the purpose of the enactment of the statute. Hence, the statute would be correctly applied to achieve what Parliament hoped for.

• | Statutory Interpretation cases, 2[here](#) |

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Intrinsic - Internal Aids – within the statute itself	
Other enacting words	An examination of the whole of a statute, or at least those Parts which deal with the subject matter of the provision to be interpreted, should give some indication of the overall purpose of the legislation. It may show that a particular interpretation of that provision will lead to absurdity when taken with another section.
Explanatory notes as an aid to interpretation	The use of explanatory notes in statutory interpretation is new; the notes were first used by Parliament alongside bills in 1999. The first judicial reference to them by

the House of Lords appears to be by Lord Hope in [1R v A \[2001\] HL](#) a rape case, when he made the following comment:

"But I think that it is legitimate to refer for the purposes of clarification to the notes to this section in the explanatory notes to the Act prepared by the Home Office. I would use it in the same way as I would use the explanatory note attached to a statutory instrument..."

However the authority for their use is the ruling on [1R \(Westminster City Council\) v National Asylum Support Service \[2002\] HL](#), **Lord Steyn** made it clear that he considered Explanatory Notes admissible, even when the statute was unambiguous:

"... Insofar as the Explanatory Notes cast light on the objective setting or contextual scene of the statute, and the mischief at which it is aimed, such materials are therefore always admissible as aids to construction."

and later...

"What is impermissible is to treat the wishes and desires of the Government about the scope of the statutory language as reflecting the will of Parliament. The aims of the Government in respect of the meaning of clauses as revealed in Explanatory Notes cannot be attributed to Parliament. The object is to see what is the intention expressed by the words enacted."

	Again Lord Steyn referred to explanatory notes in 1R v Chief Constable of South Yorkshire Police ex parte LS and Marper[2004] HL "Explanatory Notes are not endorsed by Parliament. On the other hand, in so far as they cast light on the setting of a statute, and the mischief at which it is aimed, they are admissible in aid of construction of the statute. After all, they may potentially contain much more immediate and valuable material than other aids regularly used by the courts, such as Law Commission Reports, Government Committee reports, Green Papers, and so forth."	
Some Acts have their own interpretation sections		
Administration of Estates Act 1925	"Personal chattels" mean carriages, horses, stable furniture and effects...	
Theft Act 1968	Provides a definition of theft and subsequent sections interpret the definition. E.g. 'property' includes money.	
Aids found in all Acts		
Long title	It became established in the nineteenth century that the long title could be considered as an aid to interpretation. The long title should be read as part of the context, "as the plainest of all the guides to the general objectives of a statute" (Lord Simon	

	in <i>The Black-Clawson Case</i> [1975]).
Preamble	When there is a preamble it is generally in its recitals that the mischief to be remedied and the scope of the Act are described. It is therefore clearly permissible to have recourse to it as an aid to construing the enacting provisions. Preambles ceased to be used in the nineteenth century, except in private Acts.
Short title	There is some question whether the short title should be used to resolve doubt.
Headings, side-notes	Headings, side-notes may be considered as part of the context.
Punctuation	Not used in older statutes. See the story of Sir Roger Casement, hanged because of a comma, 2223 here .
DPP v Schildkamp (1971)	Punctuation could be used as aids in cases of ambiguity as could the

	long title of the Act, headings and side note.
Hanlon v Law Society (1981)	Lord Lowry; <i>"To ignore punctuation disregards the reality that literate people, such as parliamentary draftsmen, do punctuate what they write."</i>
External aids	
Interpretation Act 1978	(This consolidated the 1889 Act and other Acts) He=she; Singular=plural; Person=corporations; Writing=any other way of producing visible form.
Textbooks and eminent writers on law	Can be cited as authoritative statements of the law of their time, and therefore of the present law if it is shown not to have changed. The reputation of the author and the date of the book are important. The Institutes of the Laws of England by Sir Edward Coke and Commentaries on the Laws of England by William Blackstone. Importantly, these legal authorities are not law and, as such, their opinions are merely persuasive.

<i>R v Shivpuri</i>(1987)	A case on criminal attempts, the courts acknowledged academic argument as an aid to interpretation.
Other cases	Cases from any branch of law and from any jurisdiction are used by the courts to assist interpretation. So, in criminal manslaughter the courts used the civil case of <i>Donoghue v Stevenson</i> [1932] to assist in deciding the scope of negligence, and in 6Re: A Children , they court used a Rabbinic judgment from New York.
Dictionaries	Notably dictionaries of the time will be used to find out the meaning of a word in an Act.
Treaties	
Reports of law reform bodies, such as the Law Commission, and advisory committees	Which lead to the passing of the Act can be used to discover the reform, which the statute intended to make. These have become acceptable since the <i>Black Clawson Case</i> (1975) .
White Papers	Occasionally reference will be made to discussion documents produced by the government even before a Bill has been drafted. Such reference is found in 112121 W v MPC [2006] on whether the word 'remove' meant

	a police officer or CSO could use force to take an under 16 year- old home from a 'dispersal area', they a said that it did. In paragraph 31 the Court of Appeal (Civil Division) referred to White Paper to assist them decide the scope of the Act.
Historical setting 	A judge may consider the historical setting of the provision that is being interpreted. <i>SpathHolme</i> (2000) spent considerable time doing precisely this.
Practice	The practice followed in the past may be a guide to interpretation. For example, the practice of eminent conveyancers where the technical meaning of a word or phrase used in conveyancing is in issue.
Hansard	
	The official daily reports and debates in Parliament proceedings (named after the compiler for a long period) can be used as an external aid in statutory interpretation.
<i>Davis v Johnson</i> [1979] HL	Lord Denning; <i>'... [not to use Hansard] would be to grope around in the dark for the meaning of an Act without switching the light on'.</i>
<i>Pickstone v Freemans</i>	Hansard used to establish why

(1988) HL	the Equal Pay Act had been passed.
Pepper v Hart (1993) HL 	Pepper v Hart concerned the construction of words in a Finance Act. The House of Lords relaxed the old rule that excluded reference to Hansard for the purposes of statutory interpretation; so as to ensure that taxation was not imposed in a way that the Treasury had "assured" the House of Commons was not intended.
	Hansard may be considered but only where the words of the Act are ambiguous or obscure or lead to an absurdity. Even then, Hansard should only be used if there was a clear statement by the Minister introducing the legislation, which would resolve the ambiguity or absurdity. Until Pepper v Hart using Hansard in that way would have been regarded as a breach of Parliamentary privilege.
R v SOS for the Environment ex parte SpathHolme (2000) HL	[Pepper v Hart merely provides a limited exception to the general rule that resort to Hansard is inadmissible] The Rent Acts (Maximum Fair

	Rent) Order 1999 was made under section 31 of the Landlord and Tenant Act 1985. One question was whether section 31 gave the ministers power to make the Order and in what circumstances. The Act may have been past to control inflation which was not now such a pressing problem. The Order restricted the ability of landlords to increase their tenants' rent. <i>SpathHolme</i> was a landlord and challenged the legality of the Order, because the statute was not clear.
Other aids	
<i>TravauxPreparatoires</i>	Original International Conventions and preparatory material can be used, following the case of 2 <i>Fothergill v Monarch Airlines</i> (1980)

RULES OF LANGUAGE

There are a number of so-called "rules of language" which "simply refer to the way in which people speak in certain contexts" (Rupert Cross, *Statutory Interpretation*).

1. EJUSDEM GENERIS

General words following particular ones normally apply only to such persons or things as are *ejusdem generis* (of the same genus or class) as the particular ones. For example:

Powell v Kempton Park Racecourse [1899] AC 143.

2. NOSCITUR A SOCIIS

This tag refers to the fact that words "derive colour from those which surround them" (per Stamp J. in *Bourne v Norwich Crematorium* [1967]). For example:

Inland Revenue Commissioners v Frere [1965]AC 402.

3. EXPRESSIO UNIUS EST EXCLUSIO ALTERIUS

"Mention of one or more things of a particular class may be regarded as silently excluding all other members of the class" (Maxwell, *Interpretation of Statutes*). For example:

Tempest v Kilner (1846) 3 CB 249.

(C) INTERNAL AIDS TO INTERPRETATION

There is a wide range of material that may be considered by a judge both (1) in determining the primary meaning of the statutory words and (2) where there is ambiguity, in pointing the way to the interpretation that is to be preferred. Some of these aids may be found within the statute in question, others are external to the statute. We deal first with "internal aids".

1. OTHER ENACTING WORDS

An examination of the whole of a statute, or at least those Parts which deal with the subject matter of the provision to be interpreted, should give some indication of the overall purpose of the legislation. It may show that a particular interpretation of that provision will lead to absurdity when taken with another section.

2. LONG TITLE

It became established in the nineteenth century that the long title could be considered as an aid to interpretation. The long title should be read as part of the context, "as the plainest of all the guides to the general objectives of a statute" (per Lord Simon in *The Black-Clawson Case* [1975]).

3. PREAMBLE

When there is a preamble it is generally in its recitals that the mischief to be remedied and the scope of the Act are described. It is therefore clearly permissible to have recourse to it as an aid to construing the enacting provisions.

4. SHORT TITLE

There is some question whether the short title should be used to resolve doubt.

5. HEADINGS, SIDE-NOTES AND PUNCTUATION

Headings, side-notes and punctuation may be considered as part of the context.

(D) EXTERNAL AIDS TO INTERPRETATION

1. HISTORICAL SETTING

A judge may consider the historical setting of the provision that is being interpreted.

2. DICTIONARIES AND OTHER LITERARY SOURCES

Dictionaries are commonly consulted as a guide to the meaning of statutory words. Textbooks may also be consulted.

3. PRACTICE

The practice followed in the past may be a guide to interpretation. For example, the practice of eminent conveyancers where the technical meaning of a word or phrase used in conveyancing is in issue.

4. OTHER STATUTES IN PARI MATERIA

Related statutes dealing with the same subject matter as the provision in question may be considered both as part of the context and to resolve ambiguities. A statute may indeed provide expressly that it should be read as one with an earlier statute or series of statutes.

5. OFFICIAL REPORTS

Legislation may be preceded by a report of a Royal Commission, the Law Commissions or some other official advisory committee. This kind of material may

be considered as evidence of the pre-existing state of the law and the "mischief" with which the legislation was intended to deal. However, it has been held that the recommendations contained therein may not be regarded as evidence of Parliamentary intention as Parliament may not have accepted the recommendations and acted upon them (*The Black-Clawson Case* [1975] AC 591).

6. TREATIES AND INTERNATIONAL CONVENTIONS

There is a presumption that Parliament does not legislate in such a way that the UK would be in breach of its international obligations.

7. PARLIAMENTARY MATERIALS

It was held by the House of Lords in *Davis v Johnson* (1979) that a court may not refer to Parliamentary materials for any purpose whatsoever connected with the interpretation of statutes. The prohibition covered such materials as reports of debates in the House and in committee, and the explanatory memoranda attached to Bills. Then in *Pepper (Inspector of Taxes) v Hart* [1993] AC 593, the House of Lords significantly relaxed the general prohibition.

See Martin, *The English Legal System*, chapter 3, for the criteria for the rule and criticism.

(E) PRESUMPTIONS

There are various presumptions that may be applied:

- (i) Presumption against changes in the common law
- (ii) Presumption against ousting the jurisdiction of the courts
- (iii) Presumption against interference with vested rights
- (iv) Strict construction of penal laws in favour of the citizen
- (v) Presumption against retrospective operation
- (vi) Presumption that statutes do not affect the Crown
- (vii) Others

See Martin, *The English Legal System*, chapter 3, for examples of the most important presumptions.

GENERAL APPROACHES TO STATUTORY INTERPRETATION

1. The rules of statutory interpretation were analysed by Professor John Willis in his influential article "Statutory Interpretation in a Nutshell" (1938). He suggested that:

'a court invokes whichever of the rules produces a result that satisfies its sense of justice in the case before it. Although the literal rule is the one most frequently referred to in express terms, the courts treat all three as valid and refer to them as occasion demands, but, naturally enough, do not assign any reason for choosing one rather than another.'

Thus, on some occasions the literal rule would be preferred to the mischief rule: on others the reverse would be the case. It was impossible to predict with certainty which approach would be adopted in a particular case.

2. Sir Rupert Cross, *Statutory Interpretation* (3rd ed, 1995), suggested that the English approach involves not so much a choice between alternative rules as a progressive analysis in which the judge first considers the ordinary meaning of the words in the general context of the statute, a broad view being taken of what constitutes the "context", and then moves to consider other possibilities where the ordinary meaning leads to an absurd result. This unified "contextual" approach is supported by dicta in decisions of the House of Lords where general principles of statutory interpretation have been discussed.

3. Reference is now frequently made by judges to the concept of "purposive" statutory construction, ie one that will "promote the general legislative purpose underlying the provisions" (per Lord Denning MR in *Nottingham v London Borough of Barnet* [1978] 1 WLR 220). There will be a comparison of readings of the provision in question based on the literal or grammatical meaning of words with readings based on a purposive approach. In *Pepper (Inspector of Taxes) v Hart* [1993] AC 593, Lord Browne-Wilkinson referred to "the purposive approach to construction now adopted by the courts in order to give effect to the true intentions of the legislature". Lord Griffiths stated:

"The days have long passed when the courts adopted a strict constructionist view of interpretation which required them to adopt the literal meaning of the language. The courts now adopt a purposive approach which seeks to give effect to the true

purpose of legislation and are prepared to look at much extraneous material that bears upon the background against which the legislation was enacted."

However, a purposive interpretation may only be adopted if judges "can find in the statute read as a whole or in material to which they are permitted by law to refer as aids to interpretation an expression of Parliament's purpose or policy" (per Lord Scarman in *R v Barnet LBC* [1983] 2 AC 309).

The Law Commission (1969) emphasised the importance in interpretation of a provision of the general legislative purpose underlying it. The Renton Committee on the Preparation of Legislation (1975) approved this.

Legal Professionalism

References:

- Advocates (Professional Code of Conduct) Regulations of 1997 SI 267-2
- The Bangalore Principle of Judicial Conduct.
- The Disciplinary Rules: state the *minimum* level of conduct below which no lawyer can fall without being subject to disciplinary action.
- Tom Ojienda (2011): Professional Ethics; A Kenyan Perspective.
- Legal Ethics and Professionalism: A hand Book (Tibihikira Kalyegira Pamela and D. Brian Dennison (Eds)
- The ethical Code of Conduct has the following contents:
 - The general duties of the advocate (chapter two)
 - The attorney-client relationship (chapter three);
 - Confidentiality and professional privilege (chapter four);

- The financial/fiduciary aspects of the attorney-client relationship (chapter five;
- Advocates' professional competence and admission to the Roll of Advocates chapter six;
- Attorney communications and legal marketing chapter seven;
- Legal ethics in ADR chapter eight;
- Ethics in pro bono legal services chapter nine
- Judicial ethics chapter ten;
- Whistle blowing in the context of professional discipline Chapter eleven.
- Postscript.

What is legal professionalism

- The legal profession much as it may involve a business aspect, is not a business in the strict sense of the word.
- There are boundaries which separate it from a dealer in cigarettes, alcohol, motor vehicle or a passenger bus.
- As a profession, it is an art, which is a common calling in the provision of services of a distinct nature.
- Lawyers form part of a group with a common calling to provide legal services.
- They must have character and integrity and must “walk the talk”. Ogoola.
- They must have the full understanding and complete commitment to observe and uphold the profession's creed and doctrine of ethics.
- The lawyer's self-esteem, as well as the reputation and stature of the entire profession, flow from each individual's strict adherence to that creed and doctrine.

- Professionalism therefore becomes essential to sustainable law practices. It requires proper focus, making sacrifices, and ensuring accommodations.
- It implies duties, loyalty to clients and society at large.
- It is these professional duties, which create fiduciary relationship between a professional and client.
- As such there are ethical expectations which include the following
 - Ethical duty of confidentiality
 - Ethical duty of zealous advocacy.
- Over time, standards of conduct have evolved to protect society against violations, which may arise out of their ignorance of a particular field of specialized knowledge.

Professional ethics

- Ethics are the heart and soul of the legal profession.
- These are the moral values, standards governing use of one's specialized knowledge in the provision of services.
- Ethics has been called "the science of the ideal human character"; in terms of: "moral action, conduct, motive or character; ... containing right or befitting; conforming to professional standards of conduct.
- However, Justice Ogoola just outlines the constitutive elements of ethics:
 - Ethics are about nobility, accountability, honesty, honour, trust, truth, openness, hard work, resilience, competence, diligence, proficiency, perseverance, charity, sacrifice, selflessness, self-denial and self- esteem. These, are the constitutive elements that are integral to the chemical formula of the natural compound called Ethics.
 - A cardinal principle of lawyering requires complete loyalty and service in good faith to the best of the lawyer's ability.
 - A lawyer must devote his full and faithful effort to the defence of his client: *see Johns v Symth*, 176 F. Supp. 949,952 (E.D. Va, 1959);

- Must adhere to high standards of honesty, integrity and good faith in dealing with his client — without taking advantage of the client, concealing facts or law from him, or in any way deceiving him: *Smoot v. Lund*, 13 Utah 2d 168, 172, 369 P 2d 933,936 (1962).
- Being known as an honest lawyer has real advantages, measurable in dollars and cents. Being an honest lawyer pays off.
- Lawyers must not allow their private interests to conflict with those of their clients. They owe their entire devotion to the interests of their client. *See e.g. United States v. Anonymous*, 215 F. Supp. 111, 113 (E.D. Tenn. 1963).
- Since lawyers are the guardian angels of the administration of justice, they should not only avoid impropriety, but should avoid even the appearance of impropriety.
- Integrity is the baseline of justice.
- Professionals act on informed decisions in situations that everyone else cannot make and this requires ethical standards.
- These therefore require awareness.
- Professional ethics become important for purposes of protecting the public.
- It is therefore, important to teach ethics to the trainee lawyers at an early stage, before they embark on their full-fledged practice of the law.
- Without professional ethics, lawyers would be left largely to their own which would expose the public to all outright abuse of process, chaos or near professional anarchy if no rules apply. That would be a recipe for disaster.
- As we speak now, the profession is at cross roads because of mistrusts by the public over the integrity of many lawyers.
- In Uganda, there is the ethical Code of Conduct, which as Justice Ogoola says
 - “is the oil that lubricates the rigid and mean machine joints of the lawyer’s practice, to ensure smooth, cordial, coherent and harmonious transaction of the tumultuous business of lawyering where tensions are stretched taut; and where civility is in short supply.

- These professional ethics are for every lawyer, young old, senior or junior, academia
- Why ethical standards?
 - Ethics make a difference but whether in practice this happens may be a hard question to answer.
 - This is because the character and integrity of an individual are usually shaped from outside the legal profession or what we study at law school.
 - However, studying legal ethics make a difference.
 - They develop awareness of ethics.
 - They build capacity to move along the ethical requirements and challenges.
 - Create awareness of broader moral and ethical concerns.
 - You get familiar with functional techniques and strategies that enable a lawyer to avoid being unethical.
 - They shape the character and integrity of lawyers.
 - Odoki suggests that a law student should ask herself/himself questions such as:
 - Who am I?
 - What do I believe in?
 - What is important to me?
 - What will I do to make this world and your country a better place to live in?
 - How will I be remembered?
 - What core values do you have as a lawyer to be?

- Professionals have relevant knowledge, which makes them different from the rest.
- Ethics deal with matters of conduct, its active and practical role and what professionals ought to do.
- Legal professional ethics is about the conduct of members in the execution of their duties in the provision of services.
- Ethics are the foundations of integrity, and this is about honest, trustworthiness, respect, and uprightness.
- This is what makes them accountable.
- Accountability is what the public expects from a professional.
- Lawyers must always avoid engaging in practices, which may inflict harm to the public.
- Services offered are for benefitting the public and not individuals and where there is conflict between the public and individual, the public interest will prevail.
- A fiduciary relationship which emerges between a client and a lawyer creates trust, and this trust which helps individuals address their problems whether positive or negatively.
- Lawyers act as trustees for their clients.
- This requires them to act in utmost good faith and due diligence when dealing with clientele.
- Therefore, lawyers are prohibited in using client's money, property or information for their personal benefits or charging unreasonable fees for services.
- This is what creates confidence.
- Therefore there are expectations following from this:

- Confidentiality: Communication between a lawyer and client is privileged and therefore cannot be disclosed as provided for under S 134 of the Evidence Act
- Negligence: a fiduciary relationship imposes a duty of care .
- Contract: advocate and client relation is based on contract. However, there are certain rules which outlaw undue influence for purposes of exploiting the relationship.
- Under such circumstances, duties of a lawyer must be confined to the instructions or terms as may be mutually agreed upon.
- Legal representation is a constitutional right. See Art.....
 - Under this provision, an advocate is under a duty to provide legal services except where:
 - there is conflict of interests,
 - incompetence in a particular field
 - there is a threat to a fair hearing or administration of justice.
 - Otherwise, it will be professional misconduct if an advocate fails to offer his or her services
 - Prohibition of competition, against lobbying or advertising for clientele by for instance adverts or charging lower fees than what is stipulated in the law
- It is for this reason why codes have evolved world over to guide the legal and other professions, i.e. engineers, doctors, architects etc.
- These standards bind the professionals in the conduct of their duties.
- When these standards are breached, there are sanctions, which are imposed, and they are enforced by the respective disciplinary body.

- In Uganda, it is the Law Council entrusted with the responsibility of guiding the legal profession and therefore, has the responsibility of developing, enforcing ethical standards and general supervision.
- Refer to Legal professional standards in Uganda laid down in the Advocates Act and the Advocates (Professional Conduct) Regulations and the Uganda Law Society Act. See sections 31(1) and 3(a) of these Acts respectively
- Therefore it becomes important that every advocate must acquaint him/her self with these standards.
- The Advocates Act creates certain offences arising out of professional misconduct.
- There are also restrictions imposed on the lawyers which include the following:
 - Qualifications for joining the profession.
 - Admission to law schools after completion of A level in Uganda and Tanzania, while in Kenya, it follows the 8:4:4 system.
 - Pre-entries examination at Makerere university although others do not have pre-entry requirements.
 - After finishing the degree course one has to pursue a post graduate diploma in legal practice at any of the law schools in the EA states: e.g. LDC, KLS and DSL.
 - These are to ensure that professional standards and ensuring high quality services.
- Anti competition rules
 - There are rules prohibiting certain kinds of conduct and practices and the minimum amounts chargeable for the services rendered
 - Advertisement of advocates for purposes of attracting clientele is prohibited.

- There are regulations governing payment of fees.
- Regulation of performance
 - Peer review, which is an evaluative exercise of the performance of the professionals at all times.
 - This is to ensure quality services are delivered.
 - Duty to serve society as a whole in a dignified manner and to avoid engaging oneself in conduct which may be demeaning to the profession.
 - Prohibition of unauthorized practice. Every lawyer must have a practicing certificate renewable every year.
 - It is one thing for one to be a lawyer, and another to practice law.
- Liability in negligence and for ethical failure.
 - A lawyer may be liable in damages for professional negligence like in the case of
 - While ethical failures arising out of misconduct will attract disciplinary action.
 - Disciplinary proceedings and measures must be based on professional standards and adjudications are by fellow lawyers.
- Qualities and character of an advocate
 - Good voice
 - Command of language
 - Confidence
 - Persistence and perseverance
 - Independence

- Courtesy
- Practical judgment
- Experience

Challenges to professionalism

- The challenge of a culture of self-interest and favouritism:
 - In Uganda we see many instances where people choose self-interest over ethical and legal obligations.
 - This overriding tendency is exemplified by the ubiquity of the phrase *“kitukidogo.”*
 - The prevalence of self-interest is understandable. It is difficult to survive in Uganda and even more difficult to obtain a high standard of living.
 - Therefore many believe in corruption as one way of survival due to low salaries, or favouritism based on relations or ethnicity and is particularly acute.
 - There is no equal share of the national cake. These concerns often break down along regional and tribal lines.
 - Ethnic relations or clan member identities have a tendency to influence the way others are treated .
 - This culture results in widely held perception that who you know has more to do with the result you will get in court than what is right and just.
 - This is a dangerous and destructive belief. If people believe that a justice system produces results based on relationships instead of justice, the people without connections will distrust the system and those with connections will attempt to exploit those relationships to their gain.
 - The justice sector is particularly susceptible to the dangers of self-interest and favouritism.

- The adversarial nature of our legal system causes some to believe that the duty of the advocate is to do whatever is in the best interest of the client.
- Advocates that take on such an approach are likely to engage a self-interested climate in a corrupt manner.
- Such advocates are also unlikely to consider the harm that unethical practices can cause to opposing parties, the justice system or society in general.
- An advocate focused merely on the interests of clients and the advocate's own financial gain is unlikely to make an impact for the greater good in Uganda.
- Advocates must rise above the tactics of bribery and the exploitation of relationships. Results within the justice system should be the product of the facts and the law.
- If advocates pursue other means for the advancement of their client's case the profession will continue to suffer and the public's trust in the legal system will continue to erode.
- the challenge of trust-building:
 - If people believe that without corruption you cannot access justice is destructive to the justice system. This is one explanation of the prevalence of mob justice.
 - Public perception is that lawyers are liars and judicial officers are also corrupt. This perception is not conducive to the a respected profession.
 - Honesty must be core value in the practice of law.
 - Advocates must know they are "moral actors not tools of their clients."
 - There must be trust of the legal profession and judicial system, and the public should for instance stop thinking that without bribing a judge you cannot get justice.

- Part of a lawyer's duty to the people is to empower the poor and to inform the uninformed.
- If advocates help in building up our people, we will have a more prosperous Uganda and we will have a greater need for legal services.
- The challenge of access.
 -
- There are problems with ethical expectation. On the one hand, lawyers must conceal some facts ("confidentiality") while forcefully asserting others on the other hand.
-
- There is widespread agreement that the legal profession
 - The legal profession has serious problems when it comes to honesty, faithfulness to reality and reputation for fair play.
 - Is in a period of stress and transition;
 - its economic models are under duress;
 - the concepts of its professional uniqueness are narrow and outdated; and,
 - as a result, its ethical imperatives are weakened and their sources ill-defined.
- There is a regrettable tendency that lawyers on the whole cannot be trusted.
- This is what one author termed as "mis-coupling of these two key ethical duties."
- The mis-coupling produces a kind of partial-truth advocacy in which the lawyer knowingly distracts attention from the truth and foster misconceptions in the minds of jurors and others.

- In the end, lawyers frequently succeed in creating false impressions or discrediting the truth and, as a result, people feel they cannot trust lawyers to be straight.
- Distrust of lawyers is not, however, just an image problem. Most lawyers do not purport to present the objective truth.
- The lawyer's skill is to weave stories that are in most cases false out of statements that are true. They deliberately undermine the credibility of truthful information and evidence that may be damaging to their clients.
- They make great efforts to encourage court and others to form misleading impressions of their clients and of past events.
- And in a variety of other contexts, the versions of reality that lawyers attempt to portray do not even purport to correspond to the actual facts as either the lawyer or the client honestly sees them.
- On the contrary, most lawyers will probably agree that, in their pursuit of values other than truth, they have not merely the right but even the duty to mislead. If a business client does.

Advocates and Judicial Officers

- Objectives of the lecture
 - Define the functions and duties of advocates and judicial officers as officers of court.
 - Enable students to understand the role of advocates and judicial officers

- Outline the law on advocates and judicial officers in EA.
- Sources of law
 - There are several instruments governing the judiciary
 - Article 14(1) of **The ICCPR**
 - State parties to ensure equal treatment of persons before judicial tribunals and to fair and public hearing by competent, independent and impartial tribunals established by law .
 - UN Basic Principles on the Independence of the Judiciary (1985),
 - The UN Basic Principles on the Role of Lawyers (1990),
 - The United Nations Human Rights Committee has further declared that the right to be tried by an independent and impartial tribunal is an absolute right for which there should be no exception.
 - The UN Guidelines on the Role of Prosecutors (1990);
 - The African Charter on Human and Peoples' Rights which promises individuals the right to be heard:
 - The presumption of innocence until proven guilty by a competent court or tribunal;
 - The right to be tried within a reasonable time by an impartial court or tribunal.
 - A landmark decision of the African Commission on Human and Peoples' Rights declared that Article 7 of the Charter cannot be deviated from since it provides the minimum protection to the citizens. (African Commission on Human and Peoples' Rights, Civil Liberties Organisation, Legal Defence Centre, Legal Defence and Assistance Project v Nigeria}
 - The Latimer House Guidelines for the Commonwealth on Parliamentary Supremacy and Judicial Independence (1998)
 - The Latimer House Principles on the Accountability of and the Relationship between the Three Branches of Government (2003),



- The Bangalore Principles on Judicial Conduct, adopted by an international gathering of Chief Justices in 2001, set out other important standards for



The Hague Memorandum for the judiciary and compile a regionally--specific elaboration of the good practices: Many of the guarantees in these three instruments are echoed in the Principles and Guidelines on the Right to a Fair Trial and Legal Assistance in Africa adopted by the African Commission on Human and Peoples' Rights in 2003. Any of the guarantees in these three instruments are echoed in the Principles and Guidelines on the Right to a Fair Trial and Legal Assistance in Africa adopted by the African Commission on Human and Peoples' Rights in 2003.



- African Union Convention on Combating Corruption.



- This principle is also qualified in the GCTF Rabat Memorandum on Good Practices for Effective Counterterrorism Practice in the Criminal Justice Sector (Rabat Memorandum) which states that Recommendations “must be built on a functional criminal justice system that is capable of handling Ordinary criminal offences while protecting the rights of the accused.”

Structure of the Government

The 1995 Constitution established Uganda as a republic with an executive, legislative, and judicial branch. The three branches operate as follow....

- Legal Sector comprises the following institutions concerned with the provision of legal services, the administration of Justice and the enforcement of legal instruments or orders.
- The main institutions as established by the Uganda Constitution of 1995 include:
 - the Ministry of Justice and Constitutional Affairs;
 - the Judiciary and the Parliament;
 - the Uganda Police Force, the Judicial Service Commission, the Uganda Law Reform Commission, the Uganda Human Rights Commission, The Uganda Land Commission, Uganda Registration Services Bureau and the Uganda Human Rights Commission, The Law Council;
 - Furthermore, there are the legal education institutions such as faculty of law – Makerere University, the Law Development Center, professional bodies such as the Uganda Law Society, and other organizations involved in legal sensitization, and advocacy.
- The following institutions and departments are key players in the implementation of legal provisions and administration of Justice.

The mandate of the ministry of justice and constitutional affairs is:

- “To promote and facilitate effective and efficient machinery capable of providing a legal framework for good governance and delivering legal advice and services to the Government, its allied institutions and the general public”.

Who are advocates and judicial officers’ roles is to champion

- They are the champions of equal justice, respect for fundamental human rights and a firm commitment to the rule of law.
- A court of law is the forum where corrupt police officers and government officials may be brought in order to condemn their misconduct and impose punishment for their abuse of public trust.
- A judge occupies an enviable position in society. That position has to be jealously guarded.
- Where corruption occurs in the Judiciary, it is the worst form of abuse of public trust since honesty, integrity and fairness are the features that entice citizens to such recourse in the courts, only to be ambushed.

The Judiciary

- The Judiciary is an independent legal organ comprised of Courts of Judicature as provided for by the Constitution.
- The judiciary is an important component of the rule of law in any country and undermining it could lead to insecurity and recourse to private justice.
- It is a medium for protecting the rights and liberties of the individual.
- Conflicts in many parts of Africa in the 1990s were as a result of the absence of public confidence that an independent and impartial judiciary that could mediate differences and grievances with the State existed.
- The Judiciary is headed by the Chief Justice and deputized by the Deputy Chief Justice.

- The Judiciary administers justice through courts of judicature including the Supreme Court, the Court of Appeal, the High Court and other courts or tribunals established by Parliament.
- The highest court in Uganda is the Supreme Court followed by the Court of Appeal, which also sits as the Constitutional Court in determining matters that require Constitutional interpretation, the High Court of Uganda has unlimited original jurisdiction.
- The Supreme Court bench is constituted by the Chief Justice and not less than six Justices. Five Justices are sufficient to hear most cases, but when hearing appeals from decisions of the Court of Appeal, a full bench of seven justices has to be present.
- The decisions of the Supreme Court form precedents that all lower courts are required to follow.
- Subordinate Courts include Magistrates Courts, and Local Council Courts, *Qadhis'* courts for marriage, divorce, inheritance of property and guardianship, and tribunals such as those established under the Land Act (Cap 227), Communications Act (Cap 106) and Electricity Act (Cap 145), and Tax Appeals Tribunal Act.
- These are various courts of judicature, which are independent of the other arms of government. They include the magisterial courts, High Court, Court of Appeal and the Supreme Court.

Court of Appeal / Constitutional Court

- The Court Appeal was established by the 1995 Constitution. It is an intermediary between the Supreme Court and the High Court and has appellate jurisdiction over the High Court. It is not a Court of first instance and has no original jurisdiction, except when it sits as a Constitutional Court to hear constitutional cases.

- The Court of Appeal consists of: the Deputy Chief Justice and such number of Justices of Appeal not being less than seven as Parliament may by law prescribe.
- Cases coming before the Court of Appeal may be decided by a single Justice.
- Any person dissatisfied with the decision of a single Justice of Appeal is entitled to have the matter determined by a bench of three Justices of Appeal, which may confirm, vary or reverse the decision.
- Cases decided by the Court of Appeal can be appealed to the Supreme Court, but the Court of Appeal is the final court in election petitions filed after Parliamentary elections or elections provided for by the Local Government Act. When deciding cases as a Constitutional Court it sits with a bench of five judges.

High Court

- The High Court of Uganda is the third court of record in order of hierarchy and has unlimited original jurisdiction, which means that it can try any case of any value or crime of any magnitude. Appeals from all Magistrates Courts go to the High Court.
- The High Court is headed by the Principal Judge who is responsible for the administration of courts and has supervisory powers over Magistrate's courts.
- The High Court has five Divisions: the Civil Division, the Commercial Division, the Family Division, the Land Division and the Criminal Division.
- Subordinate Courts include the Chief Magistrates Court, Industrial Court Magistrates Grade I and II Local Council Courts levels 3-1 (sub county, parish, and village).

Tribunals

- Specialized courts or tribunals form part of the judicial structure e.g.

- Industrial Court,
- Tax Appeals Tribunal,
- NPART Tribunal, Land Tribunals,
- Tax Appeal Tribunal and the Human Rights Tribunal.
- A parallel judicial system exists for the military with a hierarchy of courts established under the NRA Act and Regulations. The only link from the military system to the mainstream judicial system arises from an appeal from the Court Martial Appeal Court (the highest appeal court in the military system) to the Supreme Court where a death sentence or life imprisonment has been meted.

Land Tribunals

- The rationale of establishing Land Tribunals was an outcry that the courts were corrupt in adjudicating over land disputes. As noted in Chapter 2, these were recently dismantled.

The role of the JSC

- Handle complaints against the Judicial officers' mala practices and case backlog.
- For instance against High Court judge AnupChoudry Singh when Uganda Law Society petitioned the JSC to retract his appointment over ethical issues during his previous legal practice in the UK.
- There have been complaints against High Court judges, one against a Court of Appeal justice and none against Justices of the Supreme Court.”
- Submissions of complaints against judicial officers to the president are usually held up either out of the president's incompetence or due to court interventions like in the of the Constitutional Court ruling in favour of justice Chaudry Singh.
- DrKizzaBesigye of Forum for Democratic Change party, petitioned the JSC to probe and take action against deputy Chief Justice Steven Kavuma accusing him of bias and playing ball with the ruling NRM party whenever issues concerning him [Besigye] or the Opposition are before him.

- The commission is yet to publicly comment on the progress of DrBesigye's complaint.
- The JSC should be run as an independent agency like the Inspectorate of Government and Uganda Human Rights Commission.
- Under Article 146 of the Uganda Constitution, the Judicial Service Commission (JSC) is constituted by a chairperson and deputy qualified to be a justice of the Supreme Court other than the Chief Justice, deputy Chief Justice and principal judge. It also comprises a nominee from the Public Service Commission, two advocates of not less than 15 years standing nominated by the Uganda Law Society, two non-lawyers from the public and a Justice of the Supreme Court.
- The Kenya model requires the Chief Justice to be part of the JSC, the body charged with recruiting judicial officers and watching over their conduct.
- The JSC of Kenya is constituted by judicial officers, including a Justice of Court of Appeal, Justice of the Supreme Court (president of the court and also Chief Justice), High Court Judge and a chief magistrate.
- The Democratic Governance Facility (DGF) and Anti-Corruption Coalition Uganda following reforms in Kenya pushed for an amendment to let the Chief Justice, Principal Judge and Court Registrar sit on the JSC.
- The JSC should have full time members picked from the Ministry of Justice and Constitutional Affairs under which it currently falls.

Principles governing judicial independence

- Judges.... persons of integrity and ability with appropriate training and qualifications in law.
- Impartiality in accordance with the law and authority without fear, favour or ill-will is the essence of the independence of Judges shall exercise judicial power impartially.

- Where justice is not dispensed with impartiality, there is no hope for citizens to be treated with objectivity, fairness and honesty by other institutions.
- The maintenance of judicial independence and impartiality is the very reason why judges are given such a privileged position in society.
- It is why they have security of tenure in office. It is why they are given guarantees of financial independence. It is why they are treated with deference and respect in their courtrooms.
- Their tenure has to be guaranteed and adequately secured by the Constitution.
- The remuneration and other terms and conditions of service of Judges have to be well defined by the constitutions.
- Judges should not be liable to any action or suit for any act or omission in the exercise of their judicial powers or functions.
- Freedom to form associations that represent their interests, to promote their professional training and to protect their judicial independence.
- Freedom of expression, belief, association and assembly on condition that they shall always conduct themselves in a manner that preserves the dignity of their office, their impartiality and the independence of the Judiciary.
- Strive to uphold their integrity and independence by refraining from impropriety or any appearance of impropriety.
- Devote their full time and attention to their judicial duties and shall not engage in any business, trade, profession or other activity inconsistent with the judicial function.
- Financial independence of the Judiciary be entrenched in the Constitution. The Judiciary should enjoy financial budgetary autonomy, draw up its own budget and deal directly with the relevant state finance authority. The state shall be obliged to provide adequate financial resources to enable the Judiciary to perform its functions effectively. II. A Supreme Court
- An effective appeals process is one important means to ensure the accountability of judges in their day to day legal work.

- Judges are required to explain their decisions and if the explanation given reveals error, the decision may be reversed on appeal. The appellate process imposes quality control upon judicial decision making.
- The appointment of judges is a matter of grave concern. Judicial appointments are made on political grounds without public exposure and consultation.
- There may be need for advertisements of vacancies and a clear criteria for appointment appear to be uncertain.
- Lawyers have faced disciplinary proceedings should be avoided as much as possible. Judges should not be appointed for political, tribal or sectarian reasons.
- There is need for transparency in the manner in which judges are appointed without which undermines public confidence in the quality of those named to judicial office.
- There must be a transparent and merit-based judicial appointment system under the authority of a restructured Judicial Service Commission.
- Appointments should follow rigorous vetting tailored towards identifying individuals of the highest integrity for recruitment. However, it should not be politicized.
- Appointment of all judges, including the Chief Justice, be made by the President in accordance with the written recommendation of the Judicial Service Commission and after the President has duly and formally consulted the Parliamentary Committee responsible for judicial affairs, which we propose be established.
- We recommend that only distinguished judges and jurists of proven integrity and impeccable character as determined by the Judicial Service Commission be appointed as Chief Justice and as judges of the High Court, Court of Appeal and Supreme Court.
- The minimum constitutional qualification for appointment as Chief Justice or as a judge of the Supreme Court should be well defined in the constitution.
- It was for instance recommended in Kenya that judges should have fifteen years experience, as a judge of the High Court or Court of Appeal, practising advocate, or full-time law teaching in a recognized University.

- The minimum constitutional qualification for appointment as a judge of the Court of Appeal shall be a total of ten years experience: as a judge of the High Court practicing as an advocate, or full-time law teaching in a recognized University. The minimum constitutional qualification for appointment as a judge of the High Court shall be a total of ten years experience: as a magistrate, or practicing as an advocate.

How to become an Advocate

Law Council check-list on the requirements for application for eligibility and enrolment:

- An application for enrolment;
- Affidavit in support of application, which must be commissioned and registered;
- Declaration in verification of names where the order of the names in the Degree and Diploma Certificates vary (must be Commissioned and registered;
- Certified copies of the Degree and LDC Certificates;
- Two recommendations from Advocates with current practicing certificates and must have practiced for more than three years;
- Deed poll where the applicant adds another name other than those on the Degree and Diploma Certificates, or where the applicant has additional name(s) in one of the certificates, or where the applicant changes his/her names;
- A marriage certificate -where a person marries, and adds or changes her name;
- All documents must be filed in duplicate;
- The application and supporting documents must bear the same date and must be filed at the same time save for the recommendations which may be earlier but not later dates;
- All documents must be chronologically filed in the following order and annexures properly and correctly marked:
 - Application
 - Affidavit in support
 - Statutory Declaration in verification of names

- Annexure “A” -Degree Certificate (if any)
- Annexure “B” - Diploma Certificate
- Annexure “C” and “D” - Letters of recommendation
- Annexure “E” - Deed poll (if any)
- Annexure “F”- Marriage Certificate (if any)
- Any other documents relevant to the application;
- An advocate recommending applicant must state the period and professional capacity in which he/she has known the applicant; i.e. Lecturer, supervisor during Clerkship, or supervisor at current place of employment.
- Both letters of recommendation must not come from the same law firm, organization etc.
- Both letters of recommendation must not bear the same content.
- Applicants must provide 2 pass port photographs taken when dressed in dark suit and white shirt.
- Applicants must pay Shs. 45, 000/= payable at Diamond Trust Bank, Kampala Road branch.
- Copy of the Notice in the Uganda Gazette, of the applicant's application.

Uganda Law Society

- The Uganda Law Society was formed by an act of Parliament in 1956 and is governed by an executive council with representatives from each of the four regions of Uganda.
- It is a member of the [East Africa Law Society](#), which also includes member countries Kenya, Tanzania, Rwanda and Burundi.
- The Society has both Statutory and Corporate Objectives which it strives for:
 - To maintain and improve the standards of conduct and learning of the legal profession in Uganda;
 - To facilitate the acquisition of legal knowledge by members of the legal profession in Uganda as regards conditions of practice and otherwise;
 - To represent, protect and assist members of the legal profession in Uganda as regards conditions of practice and otherwise;
 - To protect and assist the public in Uganda in matters touching, ancillary or incidental to the law;

- To assist the Government and the courts in all matters affecting legislation and the administration and practice of the law in Uganda.

Corporate objectives

- To maintain and improve the standards of conduct and learning of the legal profession in Uganda;
- To protect and assist the public in Uganda in matters touching, ancillary or incidental to the law;
- To strengthen collaboration with the Government of Uganda, the Judiciary and the Legislature on all matters affecting Legislation, Human Rights, Rule of Law, Good Governance and the Administration and Practice of law in Uganda;
- To promote networking, collaboration of local and international stakeholders and legal fraternities by building linkages and exchange of expertise in the legal profession;
- It is assumed to be the safe haven where the most impoverished or abused citizen may find support for his or her legal rights when they conflict with those of the rich and powerful in society.

Challenges

- Various factors hinder access to justice and they include physical, economic, social and cultural norms and practices.
- The judicial system suffers from a serious lack of public confidence and there is need of fundamental structural reform to achieve an independent and accountable Judiciary, capable of serving the needs of the people by securing equal justice and the maintenance of the rule of law.
- There is need for measures to ensure maintenance of Judicial Rectitude of Judicial Officers in the discharge of their judicial functions.

- Corruption is widespread and takes various forms. Bribery is the most obvious and this is completely inconsistent with the law and represents an assault on the integrity of the judicial system.
- Political pressure or influence on a judge or a magistrate to decide a case other than in accordance with the law and the evidence before the court.
- This undermines the Rule of Law, the very foundation of all modern democracies. Yet the Judiciary must be the one bastion for challenging arbitrariness or oppressive actions of the state.
- It contributes to a culture of impunity where might is right and where citizen voices are muscled and denied.
- Trials take long and this creates dissatisfaction over the judicial system.
- The unfortunate conclusion is that the system is unfair to the accused, witnesses and the community at large. This attributed to a number of factors:

- Laziness of judges, which can be resolved by strict observance of punctuality by judges and all officers of court.
- Unavailability of defense counsels. This could be resolved by synchronizing trial dates which often conflicts with regard to court appearances, which may be resolved by
- Lack of trial management skills among judges, which require putting time frames with regard to closing remarks, cross-examination, submissions.
- Unwillingness of victims and prosecution witnesses. This may be a result of the following factors:
- There are measures for protecting victims and witnesses especially in terrorism trials as required under the:
 - UN Convention against Organized Crime; which requires States to provide measures to protect

witnesses from intimidation, coercion, corruption, or injury.

- UN General Assembly, Resolution 55/25, arts. 6 and 7.
- Sections 10 of Uganda's Whistle Blowers Protection Act of 2010 provides for whistleblowers protection from liability in civil or criminal proceedings) and S.11 obliges the state to provide adequate protection upon request under certain circumstances);
- the Inspectorate of Government Act of 2002 (protecting the identity of informers and witnesses as well as providing for their protection);
- The Access to Information Act No. 6 of 2005, Section 29 (providing the conditions wherein an information officer may refuse a request for access to a record where such disclosure is likely to prejudice or impair a person in accordance with a witness protection scheme).
- Sections 46, 58 of the International Criminal Court Act No. 11 of 2010 requires courts to order for protective measures during court proceedings, including:
 - holding in camera session;
 - using pseudonyms;
 - redacting identifying information;
 - using video link; and
 - employing measures that obscure or distort the identity of witnesses. *See* The Witness Protection Act of 2012, Section 20(3).
- The Act criminalizes disclosure of the identity of a protected witnesses or exposing them in the press (Section 23). The protection is extended to crucial witnesses, their relatives, persons who require protection on account of testimony given by a witness,

and any other reasons that may be deemed sufficient (Section 1(2)).

- The Act also adopts a child-sensitive approach to take into account the special needs and views of child witnesses (Section 22(2)).
- The ICD draft Rules provide for procedural protection measures such as in camera proceedings, the use of pseudonyms, and the redaction of vulnerable witnesses' identities from court records during trial. Statutory Instruments,
 - The Judicature (High Court) (International Crimes Division) Rules, Draft of 24 August 2015, Section 36 (Protective measures).
- **Accessibility of the court system requires** legal representation. Yet lawyers in Uganda are scarce to the ordinary citizen and legal aid is not yet available for the majority of Ugandans who live in the rural areas.
- The exception is for persons that have been charged with serious crime, i.e. crimes for which the sentence is life imprisonment or death under mandatory legal aid by virtue of Article 28(1)(e) of the Constitution.
- There are however complaints according to the Secretary of the ULC, that some lawyers retained by GoU under this state brief system are not diligent in representing their clients. The most frequent complaint is lawyers failure to even visit clients in prison, which risks compromising the accused person defences.
- Poverty still makes it extremely difficult for most Ugandans to access the High Court though there are 10 circuits across the country again because of the need for representation and long distances to travel to circuit courts.
- Until 2007, there was no Circuit in Northern Uganda due to the armed conflict with the LRA).
- The Court of Appeal and Supreme Court in Kampala are the most inaccessible both physically and for economic reasons.

- Courts use very technical procedures, daunting even for some advocates. The language of these courts is English, and litigants cannot access them unless represented by lawyers.
- Language barriers as it is English used in courts and interpreters are not always available for a litigant's particular dialect; most cases, except in Grade II courts, require a lawyer, which makes litigation in courts other than the LCCs a luxury to most people in a country where most earn less than \$10 a month.
- Both the law and courts are shrouded in myths and mystery to the ordinary Ugandan, causing fear and a lot of uncertainty, because most people associate courts with criminal trials and imprisonment.
- As a result there are sometimes problems with getting witnesses to appear. In addition, most magistrates courts still have a heavy caseloads, are poorly staffed and the disposal of disputes is very slow, which is most apparent with the Chief Magistrates Courts.
- States can only implement:
 - “Those aspects of any set of good practices that their legal systems allow for” and encourages States to implement the good practices that are “appropriate to their circumstances and consistent with their domestic law, regulations, and national policy, while respecting applicable international law.”
- Judges should be generalists who are capable of handling any (criminal) trial.
- However, in Uganda there is a bit of specialization owing to the different divisions in the high court but judges are often shifted across different divisions.
- Judges should continue being trained in handling different aspects of the law especially those relating to terrorism.

- **Family and Children Courts (FCCs)** have been in operation but there has been no evaluation of their impact in improving access to justice.
- Because initial reform efforts in the JLOS were limited to commercial and criminal justice, the FCCs did not receive as much attention as it deserved. There remains a dearth in information on the FCC and need to study it further. Alternative methods such as the clan, LCCs and relatives were found to be more effective in solving disputes than FCCs, which remain little known or understood by communities.
- The LCCs and clans seem to be bearing the greatest responsibility for disputes, which they are ill-equipped to do, prompting a key finding of the Integrated Study on Land and Family Justice that the jurisdiction of family justice institutions needs to be redefined.
- Any such efforts however to improve access to family justice should institutionalise links with and use of the LCC in collaboration with the clans or elders.
- This has its challenges in light of the gendered biases discussed above in these fora, especially against women and children.
- FCCs have not been successful in improving access to justice for women and children in maintenance and custody cases because the courts are not geographically accessible. They have also been affected by the program for the professionalization of the bench.
- A study of FCC the bench.e program for the professionalinane and custody cases bec challenges:
 - most FCCs are not housed in separate buildings (due to insufficient space), contrary to that requirement under the Children Act and its goal to make FCCs friendly and more accessible to litigants;
 - There were key gaps in the skills and knowledge of lay magistrates, and their decisions seemed sometimes clouded by cultural, religious and andocentric attitudes. There is an apparent clash between the Children Act's provision that FCC proceedings be as informal as possible and the Rules applying general court procedures to FCC proceedings¹⁹⁵ be as informal as possible and

the Rules applying general court like attitudes. There is an apparent clash between the Children compromising the children's interests.

- The jurisprudence on children's rights is not well because Grade II magistrates¹⁹⁵ be as informal as FCCs, are not courts of record and cases are rarely appealed from FCCs.
- The poor skill levels of probation officers to carry out investigations to establish the best interests of children in disputes before FCCs and lack of basic documentation and filing practices also compromise access to the FCCs, based on the findings at the Kampala FCC.
- Finally, FCCs created a dichotomy in litigation over family disputes, whereby in some separation and divorce cases, litigation over child maintenance takes place in FCCs and the rest of the proceedings in Grade I, Chief Magistrates takes place in FCCs and the rest of the proceedings in the training of lawyers and magistrates on the Children Act and welfare principle, extending the High Court family division to the lower courts as is proposed for the CC, giving parties the option to file cases in the High Court to help develop jurisprudence on the law on children, and emphasizing greater involvement of social workers and psychologists and use of ADR were all proposed as means for overcoming such challenges.

Local Council Courts

- These have been found to be more accessible than all other courts in Uganda. LCCs are regarded as the cheapest forum that Ugandans can employ to access justice but still appear to be outside the range of incomes of most Ugandans.¹⁹⁷ Representation in the LCCs by Advocates is limited to matters where one is prosecuted for infringement of a by-law in the court's jurisdiction.¹⁹⁸ There are, however, problems with instituting LCC proceedings, which are not as regular as in the formal courts (especially LCC II and III).
-
- Other challenges include those seen in Chapter 2 (e.g. room for the interference of prejudices and bias by presiding members, complaints of bribery of the court officials by litigants) and the need to exhaust appeals at all LCC levels (with great delays at LCC II and III) in order to take the dispute to the magistrates to access justice but still appear to be outside the accessible in the sense that when a complaint is lodged in the court at first instance, once disposed of, appeals are easier to process.

- **Land Tribunals**
- Their operation has been suspended (as discussed in Chapter 2) making discussion of their impact on access to justice moot for the time-being.

- Basic Principles on the Role of Lawyers

Adopted by the Eighth United Nations Congress on the Prevention of Crime and the Treatment of Offenders, Havana, Cuba, 27 August to 7 September 1990

- Whereas in the Charter of the United Nations the peoples of the world affirm, inter alia, their determination to establish conditions under which justice can be maintained, and proclaim as one of their purposes the achievement of international cooperation in promoting and encouraging respect for human rights and fundamental freedoms without distinction as to race, sex, language or religion,
- Whereas the Universal Declaration of Human Rights enshrines the principles of equality before the law, the presumption of innocence, the right to a fair and public hearing by an independent and impartial tribunal, and all the guarantees necessary for the defence of everyone charged with a penal offence,
- Whereas the International Covenant on Civil and Political Rights proclaims, in addition, the right to be tried without undue delay and the right to a fair and public hearing by a competent, independent and impartial tribunal established by law,
- Whereas the International Covenant on Economic, Social and Cultural Rights recalls the obligation of States under the Charter to promote universal respect for, and observance of, human rights and freedoms,
- Whereas the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment provides that a detained person shall be entitled to have the assistance of, and to communicate and consult with, legal counsel,

- Whereas the Standard Minimum Rules for the Treatment of Prisoners recommend, in particular, that legal assistance and confidential communication with counsel should be ensured to untried prisoners,
- Whereas the Safe guards guaranteeing protection of those facing the death penalty reaffirm the right of everyone suspected or charged with a crime for which capital punishment may be imposed to adequate legal assistance at all stages of the proceedings, in accordance with article 14 of the International Covenant on Civil and Political Rights,
- Whereas the Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power recommends measures to be taken at the international and national levels to improve access to justice and fair treatment, restitution, compensation and assistance for victims of crime,
- Whereas adequate protection of the human rights and fundamental freedoms to which all persons are entitled, be they economic, social and cultural, or civil and political, requires that all persons have effective access to legal services provided by an independent legal profession,
- Whereas professional associations of lawyers have a vital role to play in upholding professional standards and ethics, protecting their members from persecution and improper restrictions and infringements, providing legal services to all in need of them, and cooperating with governmental and other institutions in furthering the ends of justice and public interest, The Basic Principles on the Role of Lawyers, set forth below, which have been formulated to assist Member States in their task of promoting and ensuring the proper role of lawyers, should be respected and taken into account by Governments within the framework of their national legislation and practice and should be brought to the attention of lawyers as well as other persons, such as judges, prosecutors, members of the executive and the legislature, and the public in general. These principles shall also apply, as appropriate, to persons who exercise the functions of lawyers without having the formal status of lawyers.

Access to lawyers and legal services

- All persons are entitled to call upon the assistance of a lawyer of their choice to protect and establish their rights and to defend them in all stages of criminal proceedings.

2. Governments shall ensure that efficient procedures and responsive mechanisms for effective and equal access to lawyers are provided for all persons within their territory and subject to their jurisdiction, without distinction of any kind, such as discrimination based on race, colour, ethnic origin, sex, language, religion, political or other opinion, national or social origin, property, birth, economic or other status.
3. Governments shall ensure the provision of sufficient funding and other resources for legal services to the poor and, as necessary, to other disadvantaged persons. Professional associations of lawyers shall cooperate in the organization and provision of services, facilities and other resources.
4. Governments and professional associations of lawyers shall promote programmes to inform the public about their rights and duties under the law and the important role of lawyers in protecting their fundamental freedoms. Special attention should be given to assisting the poor and other disadvantaged persons so as to enable them to assert their rights and where necessary call upon the assistance of lawyers.

Special safeguards in criminal justice matters

5. Governments shall ensure that all persons are immediately informed by the competent authority of their right to be assisted by a lawyer of their own choice upon arrest or detention or when charged with a criminal offence.
6. Any such persons who do not have a lawyer shall, in all cases in which the interests of justice so require, be entitled to have a lawyer of experience and competence commensurate with the nature of the offence assigned to them in order to provide effective legal assistance, without payment by them if they lack sufficient means to pay for such services.
7. Governments shall further ensure that all persons arrested or detained, with or without criminal charge, shall have prompt access to a lawyer, and in any case not later than forty-eight hours from the time of arrest or detention.
8. All arrested, detained or imprisoned persons shall be provided with adequate opportunities, time and facilities to be visited by and to

communicate and consult with a lawyer, without delay, interception or censorship and in full confidentiality. Such consultations may be within sight, but not within the hearing, of law enforcement officials.

Qualifications and training

9. Governments, professional associations of lawyers and educational institutions shall ensure that lawyers have appropriate education and training and be made aware of the ideals and ethical duties of the lawyer and of human rights and fundamental freedoms recognized by national and international law.
10. Governments, professional associations of lawyers and educational institutions shall ensure that there is no discrimination against a person with respect to entry into or continued practice within the legal profession on the grounds of race, colour, sex, ethnic origin, religion, political or other opinion, national or social origin, property, birth, economic or other status, except that a requirement, that a lawyer must be a national of the country concerned, shall not be considered discriminatory.
11. In countries where there exist groups, communities or regions whose needs for legal services are not met, particularly where such groups have distinct cultures, traditions or languages or have been the victims of past discrimination, Governments, professional associations of lawyers and educational institutions should take special measures to provide opportunities for candidates from these groups to enter the legal profession and should ensure that they receive training appropriate to the needs of their groups.

Duties and responsibilities

12. Lawyers shall at all times maintain the honour and dignity of their profession as essential agents of the administration of justice.
13. The duties of lawyers towards their clients shall include:
 - (a) Advising clients as to their legal rights and obligations, and as to the working of the legal system in so far as it is relevant to the legal rights and obligations of the clients;
 - (b) Assisting clients in every appropriate way, and taking legal action to protect their interests;

- (c) Assisting clients before courts, tribunals or administrative authorities, where appropriate.
14. Lawyers, in protecting the rights of their clients and in promoting the cause of justice, shall seek to uphold human rights and fundamental freedoms recognized by national and international law and shall at all times act freely and diligently in accordance with the law and recognized standards and ethics of the legal profession.
 15. Lawyers shall always loyally respect the interests of their clients.

Guarantees for the functioning of lawyers

16. Governments shall ensure that lawyers (a) are able to perform all of their professional functions without intimidation, hindrance, harassment or improper interference; (b) are able to travel and to consult with their clients freely both within their own country and abroad; and (c) shall not suffer, or be threatened with, prosecution or administrative, economic or other sanctions for any action taken in accordance with recognized professional duties, standards and ethics.
17. Where the security of lawyers is threatened as a result of discharging their functions, they shall be adequately safeguarded by the authorities.
18. Lawyers shall not be identified with their clients or their clients' causes as a result of discharging their functions.
19. No court or administrative authority before whom the right to counsel is recognized shall refuse to recognize the right of a lawyer to appear before it for his or her client unless that lawyer has been disqualified in accordance with national law and practice and in conformity with these principles.
20. Lawyers shall enjoy civil and penal immunity for relevant statements made in good faith in written or oral pleadings or in their professional appearances before a court, tribunal or other legal or administrative authority.
21. It is the duty of the competent authorities to ensure lawyers access to appropriate information, files and documents in their possession or control in sufficient time to enable lawyers to provide effective legal assistance to their clients. Such access should be provided at the earliest appropriate time.

22. Governments shall recognize and respect that all communications and consultations between lawyers and their clients within their professional relationship are confidential.

Freedom of expression and association

23. Lawyers like other citizens are entitled to freedom of expression, belief, association and assembly. In particular, they shall have the right to take part in public discussion of matters concerning the law, the administration of justice and the promotion and protection of human rights and to join or form local, national or international organizations and attend their meetings, without suffering professional restrictions by reason of their lawful action or their membership in a lawful organization. In exercising these rights, lawyers shall always conduct themselves in accordance with the law and the recognized standards and ethics of the legal profession.

Professional associations of lawyers

24. Lawyers shall be entitled to form and join self-governing professional associations to represent their interests, promote their continuing education and training and protect their professional integrity. The executive body of the professional associations shall be elected by its members and shall exercise its functions without external interference.
25. Professional associations of lawyers shall cooperate with Governments to ensure that everyone has effective and equal access to legal services and that lawyers are able, without improper interference, to counsel and assist their clients in accordance with the law and recognized professional standards and ethics.

Disciplinary proceedings.

26. Codes of professional conduct for lawyers shall be established by the legal profession through its appropriate organs, or by legislation, in accordance with national law and custom and recognized international standards and norms.
27. Charges or complaints made against lawyers in their professional capacity shall be processed expeditiously and fairly under appropriate procedures.

Lawyers shall have the right to a fair hearing, including the right to be assisted by a lawyer of their choice.

28. Disciplinary proceedings against lawyers shall be brought before an impartial disciplinary committee established by the legal profession, before an independent statutory authority, or before a court, and shall be subject to an independent judicial review.
29. All disciplinary proceedings shall be determined in accordance with the code of professional conduct and other recognized standards and ethics of the legal profession and in the light of these principles.

The role of a lawyer

A lawyer's job is to listen to your problem, give you legal advice, discuss your options, take instructions about what you want to do and help you understand how the law applies to your case. Your lawyer may even represent you if you go to court.

When a lawyer is working for you, they have a number of duties. They must:

- [Follow instructions](#)
- [Maintain confidentiality](#)
- [Avoid conflicts of interest](#)
- [Communicate efficiently and in a timely manner](#)
- [Act honestly and in your best interests](#)
- [Act with skill and diligence](#)

Follow instructions

Your lawyer should listen to you, give you advice, take instructions about what you want to do about your legal problem and then carry out those instructions.

It is important that you are honest with your lawyer as their advice will depend on the information you give them.

After listening to you, your lawyer will give you some advice. Sometimes it may be difficult for your lawyer to give you legal advice straight away. They may need to do some research and give you advice later.

Your lawyer has a duty to advise you of all your options. You should consider the advice your lawyer gives you, however, the final decision about what you want to do, will be yours.

If you don't understand what they have told you, you should tell them.

While your lawyer has a duty to act on your instructions, your lawyer cannot do anything illegal when following your instructions. Your lawyer also has an ethical obligation not to mislead the court or waste the court's time.

Maintain confidentiality

Most conversations with your lawyer will be confidential, which means that a lawyer cannot discuss your matter with anyone including the police or the court without your permission.

There are some situations where your lawyer may tell someone information about you or your case. For example, where:

- a particular law requires them to
- it will prevent a serious criminal offence from occurring, or
- your safety or the safety of someone else is at risk.

Avoid conflicts of interest

A lawyer cannot work for you if:

- they acted for the other person or people involved in the past and they have confidential information about them that might negatively affect their interests.
- they are also acting for the other person or people involved, and they may not be able to act in the best interests of you both.
- your interests and the lawyer's own interests clash.

If a lawyer does any of the above, this could be a 'conflict of interest'.

If the lawyer finds out about a conflict of interest, they should let you know. If you think your lawyer may have a conflict of interest, you should discuss this with them.

Communicate efficiently and in a timely manner

When doing work for you, your lawyer has a duty to communicate carefully and efficiently. Your lawyer should give you regular updates about the progress of your matter.

Act honestly and in your best interests

Your lawyer should always be honest with you, and your best interests should always be your lawyer's main concern. However, lawyers cannot act illegally or unethically. Your lawyer should tell you their opinion about the strengths and weaknesses of your case, and whether they think you have 'reasonable prospects of success'. This means whether you have a good chance of winning your case.

If you think your lawyer has not been honest or has put the interests of others, including their own, before yours, you can make a complaint.

Act with skill and diligence

Your lawyer should have experience in the area of law your case falls within. If you are unsure, you should ask your lawyer how long they have been practising in the area, or how many cases similar to yours they have been involved in.

- If you want to get a lawyer but are not sure where to go, see [Finding a lawyer](#).
- If you are going to see a lawyer it is a good idea to prepare in advance, see [Preparing to meet your lawyer](#).
- If you are not happy with the service provided by your lawyer, see [Complaints about a lawyer](#).

